



2025/0360(COD)

16.7.2026

AMENDMENTS

329 - 532

Draft opinion

Alex Agius Saliba

(PE789.877v01-00)

Amending Regulations (EU) 2016/679, (EU) 2018/1724, (EU) 2018/1725, (EU) 2023/2854 and Directives 2002/58/EC, (EU) 2022/2555 and (EU) 2022/2557 as regards the simplification of the digital legislative framework, and repealing Regulations (EU) 2018/1807, (EU) 2019/1150, (EU) 2022/868, and Directive (EU) 2019/1024 (Digital Omnibus)

Proposal for a regulation

(COM(2025)0837 – 2025/0360(COD))

AM_Com_LegOpinion

Amendment 329

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 20

Regulation (EU) 2023/2854

Article 40

Text proposed by the Commission

Amendment

20. in Article 40, paragraph (6) is inserted:

deleted

‘6. This Article shall not apply to Chapter VIIc.’

Or. en

Amendment 330

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 20 – introductory part

Regulation (EU) 2023/2854

Article 40 – paragraph 6

Text proposed by the Commission

Amendment

20. In Article 40, paragraph (6) is inserted:

20. In Article 40, paragraph (6) is inserted:

Infringements of the obligations laid down in Chapter VIIc shall result in effective, proportionate and dissuasive administrative sanctions. Member States shall appoint competent authorities to impose such sanctions and, in particular, ensure that these authorities can impose sanctions in connection with unlawful transfers of data to third countries, the reidentification of pseudonymised or anonymised data, and any improper use of data re-used under this Chapter. The criteria laid down in paragraph 3 shall apply.

Amendment 331
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 22
Regulation (EU) 2023/2854
‘Article 41a

Text proposed by the Commission

(1) The European Data Innovation Board is established as a means to advising and assisting the Commission in coordinating the enforcement of this Regulation and to serve as a forum of discussion for the development of a European data economy and data policies.

Amendment

(1) The European Data Innovation Board is established as a means to advising and assisting the Commission ***and the European Data Protection Board*** in coordinating the enforcement of this Regulation and to serve as a forum of discussion for the development of a European data economy and data policies.

Amendment 332
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Article 1 – paragraph 1 – point 22
Regulation (EU) 2023/2854
Article 41a

Text proposed by the Commission

(2) It shall be composed at least of representatives of Member States competent for matters related to data, the competent authorities for enforcement of Chapters II, III, V, VIIa and VIIc of this Regulation, the European Data Protection Board, the European Data Protection Supervisor, ENISA, the EU SME Envoy or a representative appointed by the network of SME envoys. The Commission may decide to add additional categories of

Amendment

(2) It shall be composed at least of representatives of Member States competent for matters related to data, the competent authorities for enforcement of Chapters II, III, V, VIIa and VIIc of this Regulation, the European Data Protection Board, the European Data Protection Supervisor, ENISA, the EU SME Envoy or a representative appointed by the network of SME envoys. The Commission may decide to add additional categories of

members. In its appointments of individual experts, the Commission shall aim to achieve gender and geographical balance among the members of the group.

members. In its appointments of individual experts, the Commission shall aim to achieve gender and geographical balance among the members of the group. ***The European Data Innovation Board shall include structured participation from civil society, independent experts, and representatives of SMEs. Such participation shall be balanced and not affect the independence of competent authorities.***

Or. en

Amendment 333

Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 22

Regulation (EU) 2023/2854

Article 41a – paragraph 2

Text proposed by the Commission

(2) It shall be composed at least of representatives of Member States competent for matters related to data, the competent authorities for enforcement of Chapters II, III, V, VIIa and VIIc of this Regulation, the European Data Protection Board, the European Data Protection Supervisor, ENISA, the EU SME Envoy or a representative appointed by the network of SME envoys. The Commission may decide to add additional categories of members. In its appointments of individual experts, the Commission shall aim to achieve gender and geographical balance among the members of the group.

Amendment

(2) It shall be composed at least of representatives of Member States competent for matters related to data, the competent authorities for enforcement of Chapters II, III, V, VIIa and VIIc of this Regulation, the European Data Protection Board, the European Data Protection Supervisor, ENISA, the EU SME Envoy or a representative appointed by the network of SME envoys. The Commission may decide to add additional categories of members. In its appointments of individual experts, the Commission shall aim to achieve gender and geographical balance among the members of the group. ***The European Data Innovation Board shall include structured participation from all relevant stakeholders and such participation shall ensure balanced representation and shall not affect the independence of competent authorities.***

Or. en

Amendment 334
Sophia Kircher

Proposal for a regulation
Article 1 – paragraph 1 – point 23
Regulation (EU) 2023/2854
Article 42 – paragraph 1 b

Text proposed by the Commission

(b) advising and assisting the Commission with regard to developing consistent practice of competent authorities in the enforcement of Chapters II, III, V, VII, VIIa and VIIc;

Amendment

(b) advising and assisting the Commission with regard to developing consistent practice of competent authorities in the enforcement of Chapters II, III, V, VII, VIIa and VIIc, ***including providing guidance on the interplay between the GDPR and the Data Act regarding mixed datasets to prevent contradictory obligations for downstream processing;***

Or. en

Amendment 335
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Article 1 – paragraph 1 – point 23
Regulation (EU) 2023/2854
Article 42

Text proposed by the Commission

(c) facilitating cooperation between competent authorities through capacity-building and the exchange of information;

Amendment

(c) facilitating cooperation between competent authorities through capacity-building and the exchange of information; ***in particular by establishing methods for the efficient exchange of information relating to the enforcement of the rights and obligations under Chapters II, III and V in cross-border cases, including coordination with regard to the setting of penalties***

Or. en

Amendment 336
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 23
Regulation (EU) 2023/2854
Article 42 – paragraph 1

Text proposed by the Commission

Amendment

(da) gathering best practices and providing technical support for pseudonymisation and ensuring data processing in a manner that effectively preserves the privacy, confidentiality, integrity and accessibility of the information contained in the data for which re-use is allowed, including techniques for the anonymisation, generalisation, suppression and randomisation of personal data or other state-of-the-art privacy-preserving methods, and the deletion of commercially confidential information, including trade secrets or content protected by intellectual property rights;

Or. fr

Amendment 337
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 23
Regulation (EU) 2023/2854
Article 42 – paragraph 1

Text proposed by the Commission

Amendment

(db) promoting the adoption and interoperability of services which strengthen consent and the ability to take action via terminal equipment, operating systems, web browsers, applications and individual sites, while supporting the

development of common technical specifications which allow consent and refusal signals to be portable and mutually recognised at these different levels;

Or. fr

Amendment 338

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 23

Regulation (EU) 2023/2854

Article 42 – paragraph 1

Text proposed by the Commission

Amendment

(dc) assisting participants in AI regulatory sandboxes as regards compliance with Regulation (EU) 2016/679 and this Regulation, including by publishing guidelines, supporting reidentification risk prevention and facilitating consent management for data subjects;

Or. fr

Amendment 339

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 25 – point b

Regulation (EU) 2023/2854

Article 46

Text proposed by the Commission

Amendment

(b) the following paragraph 1a is inserted:

deleted

‘1a. Where reference is made to this paragraph, Article 4 of Regulation (EU) No 182/2011 shall apply.’

Amendment 340

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 26 – point a – point ii – introductory part

Regulation (EU) 2023/2854

Art 49

Text proposed by the Commission

(ii) point (m) is replaced by the following:

Amendment

(ii) point (m) is replaced by the following **points**:

Or. en

Amendment 341

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 26 – point a – point ii

Regulation (EU) 2023/2854

Article 49

Text proposed by the Commission

(m) the impact of this Regulation on ***SMEs and SMCs with regard to their capacity to innovate and to the availability of data processing services for users in the Union and the burden of complying with new obligations***

Amendment

(m) ***(m)*** the impact of this Regulation on ***consumer protection and fundamental rights, including the rights to privacy and the protection of personal data, non discrimination, access to information, and the effective remedy;***

(ma) the impact of this Regulation on concentration of data access, control, and intermediation power, including the role of undertakings designated as gatekeepers under Regulation (EU) 2022/1925 and very large enterprises;

Or. en

Amendment 342

Morten Løkkegaard, Svenja Hahn, Jeannette Baljeu, Sandro Gozi

Proposal for a regulation

Article 2 a (new)

Text proposed by the Commission

Amendment

Article 2a

Member States shall ensure that the procedures referred to in this entry are accessible and can be completed fully online through the Single Digital Gateway, including by cross-border users and businesses established in another Member State, without requiring physical presence, national establishment or the use of national-only identification means, unless such requirement is objectively justified, proportionate and provided for by Union law.

Or. en

Justification

Strengthens the Single Market by ensuring that business-facing digital procedures are genuinely cross-border and not only nationally digital.

Amendment 343

Morten Løkkegaard, Sandro Gozi, Svenja Hahn, Jeannette Baljeu

Proposal for a regulation

Article 2 b (new)

Text proposed by the Commission

Amendment

Article 2b

For the procedures referred to in this entry, competent authorities shall not request from users information or evidence that has already been submitted to, or is available from, another competent authority through the technical system referred to in Article 14 of Regulation (EU) 2018/1724, unless such request is strictly necessary and duly

justified.

Or. en

Justification

Reduces administrative burden and prevents the Single Digital Gateway from becoming an additional layer rather than a simplification tool.

Amendment 344

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point a

Regulation (EU) 2016/679

Article 4

Text proposed by the Commission

Amendment

(a) in point 1, the following sentences are added: **deleted**

‘Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.’

Or. en

Justification

There is no substantive impact assessment on changing the definition of personal data, which would have significant effects on protection of consumers and the conduct of businesses in the internal market.

Amendment 345
Kateřina Konečná

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point a

Regulation (EU) 2016/679

Article 4 – point 1

Text proposed by the Commission

Amendment

(a) in point 1, the following sentences are added: **deleted**

‘Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.’

Or. en

Justification

The text proposed by the Commission risks undermining the implementation of the European Health Data Space Regulation in relation to trust on accessing and sharing of personal electronic health data. Weakening the definition of personal data erodes the foundation of trust between doctors and patients — a relationship that ensures clinical data are accurate, complete, and valid. The integrity of the treatment relationship is critical to generating reliable data for safe digital solutions. Weakening the definition does not drive innovation but risks undermining the quality and safety of digital health initiatives.

Amendment 346
Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point a

Regulation (EU) 2016/679

Article 4

Text proposed by the Commission

Amendment

‘Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.’

deleted

Or. fr

Amendment 347
Christian Doleschal

Proposal for a regulation
Article 3 – paragraph 1 – point 1 – point a
Regulation (EU) 2016/679
Article 4 paragraph 1

Text proposed by the Commission

Amendment

Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.

Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used ***in practice*** by that entity, ***considering all objective factors, such as the costs, technological resources and the amount of time required for identification and the safeguards applied to the processing.*** Such information does not become personal for that entity merely because ***the entity which***

sent the data to that entity or a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.

Or. en

Amendment 348
Piotr Müller

Proposal for a regulation
Article 3 – paragraph 1 – point 1 – point a
Regulation (EU) 2016/679
Article 4 – point 1

Text proposed by the Commission

Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.

Amendment

Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates. ***In assessing the means reasonably likely to be used by a given entity, account shall be taken of the technical and organisational measures implemented by that entity, including pseudonymisation and privacy-enhancing technologies.***

Or. en

Justification

Confirms that data rendered non identifiable by advanced techniques is not personal data for an entity that cannot re-identify it, narrowing the scope of the GDPR and removing compliance cost for anonymised/pseudonymised processing.

Amendment 349

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point b

Regulation (EU) 2016/679

Article 4

Text proposed by the Commission

Amendment

(38) “scientific research” means any research which can also support innovation, such as technological development and demonstration. These actions shall contribute to existing scientific knowledge or apply existing knowledge in novel ways, be carried out with the aim of contributing to the growth of society’s general knowledge and wellbeing and adhere to ethical standards in the relevant research area. This does not exclude that the research may also aim to further a commercial interest. *deleted*

Or. en

Justification

Due to the lack of impact assessment such a change is not adequately justified and therefore should not be proposed unless potential consequences on consumers and businesses in the internal market are clear.

Amendment 350

Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point b

Regulation (EU) 2016/679

Article 4 – point 38

Text proposed by the Commission

Amendment

(38) “scientific research” means any research which can also support innovation, such as technological development and demonstration. These

(38) “scientific research” means any research which can also support innovation, such as technological development and demonstration. These

actions shall contribute to existing scientific knowledge or apply existing knowledge in novel ways, be carried out with the aim of contributing to the growth of society's general knowledge and wellbeing and adhere to ethical standards in the relevant research area. This does not exclude that the research may also aim to further a commercial interest.

actions shall contribute to existing scientific knowledge or apply existing knowledge in novel ways, be carried out with the aim of contributing to the growth of society's general knowledge and wellbeing and adhere to ethical standards in the relevant research area. This does not exclude that the research may also aim to further a commercial interest. ***Scientific research shall not include the profiling of natural persons, direct marketing, monitoring the behaviour of individuals or activities aimed at influencing or directing the behaviour of natural persons, even if these activities use scientific methods.***

Or. fr

Amendment 351

Piotr Müller

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point b

Regulation (EU) 2016/679

Article 4 – point 38

Text proposed by the Commission

(38) “scientific research” means any research which can also support innovation, such as technological development and demonstration. These actions shall contribute to existing scientific knowledge or apply existing knowledge in novel ways, be carried out with the aim of contributing to the growth of society's general knowledge and wellbeing and adhere to ethical standards in the relevant research area. This does not exclude that the research may also aim to further a commercial interest.

Amendment

(38) “scientific research” means any research which can also support innovation, such as technological development and demonstration. These actions shall contribute to existing scientific knowledge or apply existing knowledge in novel ways, be carried out with the aim of contributing to the growth of society's general knowledge and wellbeing and adhere to ethical standards in the relevant research area. This does not exclude that the research may also aim to further a commercial interest. ***An activity does not lose its scientific research character solely because it is privately funded, is carried out within a commercial undertaking or because the results of that research are subsequently***

used for commercial activities.

Or. en

Justification

Confirms that private funding or a commercial dimension does not disqualify scientific research.

Amendment 352

Arba Kokalari

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point b

Regulation (EU) 2016/679

Article 4

Text proposed by the Commission

(38) “scientific research” means any research which can also support innovation, such as technological development and demonstration. These actions shall contribute to existing scientific knowledge or apply existing knowledge in novel ways, be carried out with the aim of contributing to the growth of society’s general knowledge and wellbeing and adhere to ethical standards in the relevant research area. This does not exclude *that the* research *may also* aim to further a commercial interest.

Amendment

(38) “scientific research” means any research which can also support innovation, such as technological development and demonstration. These actions shall contribute to existing scientific knowledge or apply existing knowledge in novel ways, be carried out with the aim of contributing to the growth of society’s general knowledge and wellbeing and adhere to ethical standards in the relevant research area. This does not exclude research *testing or development of AI systems or AI models prior to their being placed on the market or put into service or the* aim to further a commercial interest.

Or. en

Amendment 353

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point b

Regulation (EU) 2016/679

Article 4

Text proposed by the Commission

Amendment

(38a) "contextual advertising" means the selection and display of non-personalised advertisements based solely on the content or contextual environment of a single web page, application or search query accessed or viewed by the data subject at a given moment without processing any personal data of the data subject current, past or future behaviour, including but not limited to browsing history, profiles, or activity across websites, applications, search queries and location data

Or. en

Amendment 354

Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point b

Regulation (EU) 2016/679

Article 4 – point 38 a

Text proposed by the Commission

Amendment

(38a) ‘identifiable natural person’ means a natural person who can be identified, either directly or indirectly, when account is taken of all relevant means that might reasonably be used;

Or. fr

Amendment 355

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point b

Regulation (EU) 2016/679

Article 4

Text proposed by the Commission

Amendment

(38b) ‘mobile application’ means application software designed and developed for use by the general public on mobile devices such as smartphones and tablets. It does not include the software that controls those devices (mobile operating systems) or hardware;

Or. en

Amendment 356

Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point b

Regulation (EU) 2016/679

Article 4 – point 38 b

Text proposed by the Commission

Amendment

(38b) ‘non-identifiable natural person’, in relation to a given entity, means a natural person that cannot be identified by this entity when account is taken of all relevant means that might reasonably be used by this entity;

Or. fr

Amendment 357

Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point b

Regulation (EU) 2016/679

Article 4 – point 38 c

Text proposed by the Commission

Amendment

(38c) ‘pseudonymised data’ means personal data having undergone privacy-

enhancing technical, organisational or cryptographic measures designed to prevent the likelihood of the data being assigned to a specific natural person while preserving their value for lawful processing purposes; it differs from anonymisation, which renders the data subject non-identifiable or more identifiable;

Or. fr

Amendment 358
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 1 – point b
Regulation (EU) 2016/679
Article 4 – paragraph 38 d

Text proposed by the Commission

Amendment

(38d) ‘state-of-the-art privacy-preserving and privacy-strengthening methods’ means recognised technical and organisational methods which reflect the state of the art and which reduce or eliminate the possibility that data may be attributed to a natural person, including pseudonymisation and the separation of keys, encryption, aggregation and generalisation, the addition of statistical noise and differential privacy, synthetic data generation, secure multi-party computation and use of secure processing environments.

Or. fr

Amendment 359
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 2
Regulation (EU) 2016/679

Article 5

Text proposed by the Commission

‘collected for specified, explicit and legitimate purposes and not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes shall, in accordance with Article 89(1), be considered to be compatible with the initial purposes, ***independent of the conditions of Article 6(4) of this Regulation, (‘purpose limitation’)***’

Amendment

‘collected for specified, explicit and legitimate purposes and not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes shall, in accordance with Article 89(1), be considered to be compatible with the initial purposes;’

Or. fr

Amendment 360 **Virginie Joron**

Proposal for a regulation
Article 3 – paragraph 1 – point 2 a (new)
Regulation (EU) 2016/679
Article 5 – paragraph 3

Text proposed by the Commission

Amendment

2a. The following subparagraph is added after Article 5(3):

This paragraph shall not apply if the subscriber or user is a natural person and the information stored or accessed constitutes the processing of personal data.

Or. fr

Amendment 361 **Virginie Joron**

Proposal for a regulation
Article 3 – paragraph 1 – point 2 b (new)
Regulation (EU) 2016/679

Article 6 – paragraph 1 a

Text proposed by the Commission

Amendment

2b. The following paragraph 1a is inserted in Article 6:

‘1a. For the purposes of paragraph 1, a data subject shall only be required to set up a permanent user account or supply personal data in order to access offers or purchase goods or services if it is strictly necessary to set up the account or supply the data.

If the offers can be accessed or the goods or services purchased without setting up a permanent user account or without supplying the data, the controller shall provide the data subject with a clear, easily accessible and non-discriminatory option for doing so, and use of this option shall not entail less favourable conditions for the data subject.’

Or. fr

Amendment 362
Kateřina Konečná

Proposal for a regulation
Article 3 – paragraph 1 – point 3 – point a
Regulation (EU) 2016/679
Article 9 – paragraph 2

Text proposed by the Commission

Amendment

(a) in paragraph 2, the following points are added: **deleted**

‘(k) processing in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, subject to the conditions referred to in paragraph 5.

(l) processing of biometric data is necessary for the purpose of confirming

the identity of a data subject (verification), where the biometric data or the means needed for the verification is under the sole control of the data subject.'

Or. en

Amendment 363

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 3 – point a

Regulation (EU) 2016/679

Article 9

Text proposed by the Commission

Amendment

(k) processing in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, subject to the conditions referred to in paragraph 5.

deleted

Or. en

Amendment 364

Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 3 – point a

Regulation (EU) 2016/679

Article 9 – paragraph 2 – point k

Text proposed by the Commission

Amendment

(k) processing in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, subject to the conditions referred to in paragraph 5;

(k) processing in the context of the development and operation of an *innovative system or technology required to pursue the legitimate interests of the controller or a third party, irrespective of whether this system or technology exists upon the date when this Regulation is adopted, a current example of which is an*

AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, subject to the conditions referred to in paragraph 5, ***and without prejudice to the prohibited practices outlined in Article 5 of Regulation (EU) 2024/1689, the rules for classifying high-risk AI systems laid down in Article 6, the obligations imposed on deployers of high-risk AI systems in Article 26 and the transparency obligations laid down in Article 50 of this Regulation.***

Or. fr

Amendment 365

Arba Kokalari

Proposal for a regulation

Article 3 – paragraph 1 – point 3 – point a

Regulation (EU) 2016/679

Article 9 – Paragraph 2

Text proposed by the Commission

Amendment

(lb) processing is necessary for the purposes of carrying out obligations set by other internal market and customs union law, where there are no cross-references to Regulation (EU) 2016/679;

Or. en

Amendment 366

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 3 – point b

Regulation (EU) 2016/679

Article 9

Text proposed by the Commission

Amendment

(b) the following paragraph is added: ***deleted***

‘5. For processing referred to in point (k) of paragraph 2, appropriate organisational and technical measures shall be implemented to avoid v the collection and otherwise processing of special categories of personal data. Where, despite the implementation of such measures, the controller identifies special categories of personal data in the datasets used for training, testing or validation or in the AI system or AI model, the controller shall remove such data. If removal of those data requires disproportionate effort, the controller shall in any event effectively protect without undue delay such data from being used to produce outputs, from being disclosed or otherwise made available to third parties.’

Or. en

Amendment 367

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 3 – point b

Regulation (EU) 2016/679

Article 9

Text proposed by the Commission

Amendment

5. For processing referred to in point (k) of paragraph 2, appropriate organisational and technical measures shall be implemented to avoid v the collection and otherwise processing of special categories of personal data. Where, despite the implementation of such measures, the controller identifies special categories of personal data in the datasets used for training, testing or validation or in the AI system or AI model, the controller shall remove such data. If removal of those data requires disproportionate effort, the controller	deleted
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shall in any event effectively protect without undue delay such data from being used to produce outputs, from being disclosed or otherwise made available to third parties.

Or. en

Amendment 368
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 3 – point b
Regulation (EU) 2016/679
Article 9 – paragraph 5

Text proposed by the Commission

5. For processing referred to in point (k) of paragraph 2, appropriate organisational and technical measures shall be implemented to avoid the collection and otherwise processing of special categories of personal data. Where, despite the implementation of such measures, the controller identifies special categories of personal data in the datasets used for training, testing or validation or in the AI system or AI model, the controller shall remove such data. If removal of those data requires disproportionate effort, the controller shall in any event effectively protect without undue delay such data from being used to produce outputs, from being disclosed or otherwise made available to third parties..

Amendment

‘5. For processing referred to in point (k) of paragraph 2, appropriate organisational and technical measures shall be implemented *without undue delay* to avoid the collection and otherwise processing of special categories of personal data. *In order to determine whether the deletion of the data involves disproportionate effort, consideration shall be given to the state of the art, the implementation costs, the volume of data in question, the technical feasibility of isolating or extracting the data as well as the nature, scope and purposes of processing.* Where, despite the implementation of such measures, the controller identifies special categories of personal data in the datasets used for training, testing or validation or in the AI system or AI model, the controller shall remove such data. If removal of those data requires disproportionate effort, the controller shall in any event effectively protect without undue delay such data from being used to produce outputs, from being disclosed or otherwise made available to third parties.

The controller shall implement effective

organisational and technical measures to prevent their deduction, disclosure or use. These measures shall reflect the state of the art and shall include, where applicable, the filtering and removal of these data from training, testing and validation datasets, pseudonymisation and separation of keys as well as technical measures preventing deduction, recovery or disclosure using the outputs of the AI model or system; their application shall be proportionate to the risk and shall be documented by the controller.

Or. fr

Amendment 369
Kateřina Konečná

Proposal for a regulation

Article 3 – paragraph 1 – point 3 – point b

Regulation (EU) 2016/679

Article 9 – paragraph 5(new)

Text proposed by the Commission

5. *For processing referred to in point (k) of paragraph 2, appropriate organisational and technical measures shall be implemented to avoid v the collection and otherwise processing of special categories of personal data. Where, despite the implementation of such measures, the controller identifies special categories of personal data in the datasets used for training, testing or validation or in the AI system or AI model, the controller shall remove such data. If removal of those data requires disproportionate effort, the controller shall in any event effectively protect without undue delay such data from being used to produce outputs, from being disclosed or otherwise made available to third parties.*

Amendment

5. *When processing personal data leads to residual and incidental processing of special categories of data, the controller shall implement appropriate organisational and technical measures to avoid such processing and shall remove such data. If removal of those personal data is impossible or requires disproportionate effort, the controller shall in any event effectively protect without undue delay such data from being used or re-used for other purposes, in particular to produce AI outputs or actions, and, from being disclosed or otherwise made available to third parties.*

Or. en

Amendment 370
Arba Kokalari

Proposal for a regulation
Article 3 – paragraph 1 – point 3 – point b
Regulation (EU) 2016/679
Article 9 – paragraph 5

Text proposed by the Commission

5. For processing referred to in point (k) of paragraph 2, appropriate organisational and technical measures shall be implemented to ***avoid*** the collection and otherwise processing of special categories of personal data. Where, despite the implementation of such measures, the controller identifies special categories of personal data in the datasets used for training, testing or validation or in the AI system or AI model, the controller shall remove such data. If removal of those data requires disproportionate effort, the controller shall in any event effectively protect without undue delay such data from being ***used to produce outputs, from being*** disclosed or otherwise made available to third parties.

Amendment

5. For processing referred to in point (k) of paragraph 2, appropriate organisational and technical measures shall be implemented to ***mitigate risks associated with*** the collection and otherwise processing of special categories of personal data. Where, despite the implementation of such measures, the controller identifies special categories of personal data in the datasets used for training, testing or validation or in the AI system or AI model, the controller shall remove such data. If removal of those data requires disproportionate effort, the controller shall in any event effectively protect without undue delay such data from being disclosed or otherwise made available to third parties.

Or. en

Amendment 371
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 3 – point b
Regulation (EU) 2016/679
Article 9 – paragraph 5 (new)

Text proposed by the Commission

Amendment

5a. If the processing referred to in paragraph 2, point (k), is carried out in an AI regulatory sandbox set up under Article 57 of Regulation (EU) 2024/1689,

or as part of testing in real world conditions under Article 60 of this Regulation, it must comply with the conditions and safeguards provided for in Article 59 and Articles 60 and 61 of this Regulation respectively. In particular, personal data shall be processed in a functionally separate, isolated and protected environment, under the processor's control; effective monitoring and intervention mechanisms shall be put in place to identify and mitigate any high risks to the rights and freedoms of the data subjects and, where necessary, to interrupt the processing; and all personal data shall be deleted once the participation in the sandbox or testing has terminated. ;

Or. fr

Amendment 372
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 3 – point b
Regulation (EU) 2016/679
Article 9 – paragraph 5 b

Text proposed by the Commission

Amendment

5b. *Where the controller is a small or medium-sized enterprise or a small mid-cap company, the organisational and technical measures referred to in this paragraph shall be implemented in a way that is appropriate to their size and their capacities, without reducing the level of protection for data subjects and, in particular, without compromising the obligation to delete or provide effective protection for particular categories of personal data. The competent authorities shall provide these enterprises and companies with guidance to this end.;*

Or. fr

Amendment 373
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 4
Regulation (EU) 2016/679
Article 12 – paragraph 5

Text proposed by the Commission

Information provided under Articles 13 and 14 and any communication and any actions taken under Articles 15 to 22 and 34 shall be provided free of charge. Where requests from a data subject are manifestly unfounded or excessive, in particular because of their repetitive character or also, for requests under Article 15 because the data subject abuses the rights conferred by this regulation for purposes *other than* the protection of their data, the controller may *either*:

Amendment

Information provided under Articles 13 and 14 and any communication and any actions taken under Articles 15 to 22 and 34 shall be provided free of charge. Where requests from a data subject are manifestly unfounded or excessive, in particular because of their repetitive character or also, for requests under Article 15 because the data subject abuses the rights conferred by this Regulation for purposes *unrelated to* the protection of their data, the controller may *refuse to act on the request*.

Or. fr

Amendment 374
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 4
Regulation (EU) 2016/679
Article 12 – paragraph 5

Text proposed by the Commission

(a) charge a reasonable fee taking into account the administrative costs of providing the information or communication or taking the action requested; or

Amendment

deleted

Or. fr

Amendment 375
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 4
Regulation (EU) 2016/679
Article 12 – paragraph 5

Text proposed by the Commission

Amendment

(b) refuse to act on the request. *deleted*

Or. fr

Amendment 376
Arba Kokalari

Proposal for a regulation
Article 3 – paragraph 1 – point 4
Regulation (EU) 2016/679
Article 12 – paragraph 5

Text proposed by the Commission

Amendment

The controller shall bear the burden of demonstrating that the request is manifestly unfounded or that there are reasonable grounds to believe that it is excessive. *deleted*

Or. en

Amendment 377
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 5
Regulation (EU) 2016/679
Article 13

Text proposed by the Commission

Amendment

5. In Article 13, paragraph 4 is replaced by the following: *deleted*

‘4. Paragraphs 1, 2 and 3 shall not apply

where the personal data have been collected in the context of a clear and circumscribed relationship between data subjects and a controller exercising an activity that is not data-intensive and there are reasonable grounds to assume that the data subject already has the information referred to in points (a) and (c) of paragraph 1, unless the controller transmits the data to other recipients or categories of recipients, transfers the data to a third country, carries out automated decision-making, including profiling, referred to in Article 22(1), or the processing is likely to result in a high risk to the rights and freedoms of data subjects within the meaning of Article 35.'

Or. fr

Amendment 378 Virginie Joron

Proposal for a regulation Article 3 – paragraph 1 – point 5 Regulation (EU) 2016/679 Article 13 – paragraph 4

Text proposed by the Commission

‘4. Paragraphs 1, 2 and 3 shall not apply where the personal data have been collected in the context of a clear and circumscribed relationship between data subjects and a controller exercising an activity that is not data-intensive and ***there are reasonable grounds to assume*** that the data subject already has the information referred to in points (a) ***and*** (c) of paragraph 1, ***unless*** the controller ***transmits the*** data to other recipients or categories of recipients, ***transfers the*** data to a third country, ***carries out*** automated decision-making, including profiling, referred to in Article 22(1), or the processing is likely to result in a high risk to the rights and freedoms of data subjects

Amendment

‘4. Paragraphs 1, 2 and 3 shall not apply where the personal data have been collected in the context of a clear and circumscribed relationship between data subjects and a controller exercising an activity that is not data-intensive and ***the controller is able to demonstrate*** that the data subject already has the information referred to in points (a), (c) ***and (d)*** of paragraph 1. ***If*** the controller ***intends to carry out processing operations requiring the information referred to in points (e) and (f) of paragraph 1, such as the transmission of*** data to other recipients or categories of recipients, ***the transfer of*** data to a third country, automated decision-making, including profiling, referred to in

within the meaning of Article 35.

Article 22(1), or ***if*** the processing is likely to result in a high risk to the rights and freedoms of data subjects within the meaning of Article 35, ***the processor shall supply this information to the data subject.***

Or. fr

Amendment 379

Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 5

Regulation (EU) 2016/679

Article 13 – paragraph 4

Text proposed by the Commission

Amendment

4a. 4a. An activity shall be deemed circumscribed and not data-intensive if the processing of the personal data is ancillary to the controller's principal activity and is limited in terms of volume, scope and purpose. These relationships shall include in particular:

(a) the relationship between a data subject and a professional who is bound by a legal or ethical duty of confidentiality, such as a lawyer, a doctor or a notary, acting within the framework of this relationship;

(b) the business relationship between a customer and a professional in connection with the supply of a good or service specifically requested by the data subject, provided that the list of customers is used solely as an internal management tool and is not intended to be communicated to third parties or used for commercial purposes;

(c) the non-business relationship between a member and an association, or between an employee and an employer, in so far as the processing is limited to what is

necessary for this relationship.

Or. fr

Amendment 380

Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 6

Regulation (EU) 2016/679

Article 13 – paragraph 5

Text proposed by the Commission

‘5. When the processing takes place for scientific research purposes and the provision of information referred to under paragraphs 1, 2 and 3 proves impossible or would involve a disproportionate effort subject to the conditions and safeguards referred to in Article 89(1) or in so far as the obligation referred to in paragraph 1 of this Article is likely to render impossible or seriously impair the achievement of the objectives of that processing, the controller does not need to provide the information referred to under paragraphs 1, 2 and 3. In such cases the controller shall take appropriate measures to protect the data subject's rights and freedoms and legitimate interests, including making the information publicly available..

Amendment

‘5. When the processing takes place for scientific research purposes and the provision of information referred to under paragraphs 1, 2 and 3 proves impossible or would involve a disproportionate effort subject to the conditions and safeguards referred to in Article 89(1) or in so far as the obligation referred to in paragraph 1 of this Article is likely to render impossible or seriously impair the achievement of the objectives of that processing, the controller does not need to provide the information referred to under paragraphs 1, 2 and 3. In such cases the controller shall take appropriate measures to protect the data subject's rights and freedoms and legitimate interests, including making the information publicly available. ***This paragraph shall apply without prejudice to the conditions and safeguards which apply to the processing of personal data in AI regulatory sandboxes and during testing in real world conditions under Articles 59, 60 and 61 of Regulation (EU) 2024/1689, which shall continue to apply.***

Or. fr

Amendment 381

Arba Kokalari

Proposal for a regulation
Article 3 – paragraph 1 – point 7
Regulation (EU) 2016/679
Article 22 – paragraph 1

Text proposed by the Commission

Amendment

(ca) is taken by an AI system which can be reviewed and overseen by a natural person before or after it takes effect, and where appropriate safeguards are in place;

Or. en

Amendment 382
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 7
Regulation (EU) 2016/679
Article 22 – paragraph 1

Text proposed by the Commission

Amendment

1a. The data subject shall have the right not to be subject to a decision based solely on automated processing, including profiling, which produces legal effects concerning him or her or similarly significantly affects him or her.

Or. fr

Amendment 383
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 7
Regulation (EU) 2016/679
Article 22 – paragraph 2

Text proposed by the Commission

Amendment

1b. If a decision referred to in

paragraph 1 is based on the outputs of a high-risk AI system within the meaning of Regulation (EU) 2024/1689, the measures referred to in point (b) of paragraph 1, as well as the safeguards accompanying a decision taken in application of points (a) and (c) thereof, shall be without prejudice to the human oversight requirements imposed in Article 14 of this Regulation. In particular, the natural persons entrusted with human oversight must be able to understand properly the system's capabilities and limitations, to interpret correctly its outputs, to remain aware of the risk of over-reliance on these outputs, and to decide not to use the system or to override, ignore or reverse its outputs. Automated processing shall not deprive the data subject of the right to seek human intervention, express personal views and contest the decision.

Or. fr

Amendment 384 Virginie Joron

Proposal for a regulation Article 3 – paragraph 1 – point 8 – point a Regulation (EU) 2016/679 Article 33 – paragraph 1

Text proposed by the Commission

‘1. In the case of a personal data breach that is likely to result in a high risk to the rights and freedoms of natural persons, the controller shall without undue delay and, where feasible, not later than 96 hours after having become aware of it, notify the personal data breach via **the single-entry** point established pursuant to Article 23a of Directive (EU) 2022/2555 to the supervisory authority competent in accordance with Article 55 and Article 56. Where the notification to the supervisory authority is not made within 96 hours, it

Amendment

‘1. In the case of a personal data breach that is likely to result in a high risk to the rights and freedoms of natural persons, the controller shall without undue delay and, where feasible, not later than 96 hours after having become aware of it, notify the personal data breach via **its national point of entry** established pursuant to Article 23a of Directive (EU) 2022/2555 to the supervisory authority competent in accordance with Article 55 and Article 56. Where the notification to the supervisory authority is not made

shall be accompanied by reasons for the delay.;

within 96 hours, it shall be accompanied by reasons for the delay. ***Controllers shall continue to document breaches which are not notified, including the facts relating to the personal data breach, its effects and the remedial action taken.***

Or. fr

Amendment 385
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 8 – point b
Regulation (EU) 2016/679
Article 33 – paragraphe 1 a

Text proposed by the Commission

Amendment

(b) the following paragraph is added:
‘1a. Until the establishment of the single-entry point pursuant to Article 23a of Directive (EU) 2022/2555, controllers shall continue to notify personal data breaches directly to the competent supervisory authority in accordance with Article 55 and Article 56.’

deleted

Or. fr

Amendment 386
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 8 – point c
Regulation (EU) 2016/679
Article 33 – paragraph 6

Text proposed by the Commission

Amendment

‘6. The Board shall prepare and transmit to the Commission a proposal for a common template for notifying a personal data breach to the competent supervisory authority referred to in

‘6. The Board shall prepare and transmit to the Commission a proposal for a common template for notifying a personal data breach to the competent supervisory authority referred to in

paragraph 1 as well as for a list of the circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person. The proposals shall be submitted to the Commission within [OP date = nine months of the entry into application of this Regulation]. The Commission after due consideration *reviews it*, as necessary, and is empowered to adopt *it* by way of an implementing act in accordance with the examination procedure set out in Article 93(2).

paragraph 1 as well as for a list of the circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person. The proposals shall be submitted to the Commission within [OP date = nine months of the entry into application of this Regulation]. The Commission after due consideration *refers them to the Board so that the latter can review them*, as necessary, and is empowered to adopt *them* by way of an implementing act in accordance with the examination procedure set out in Article 93(2). *If the Commission departs from the proposal submitted by the Board, it shall set out the reasons for doing so. These reasons shall be made public at the same time as the implementing act.*

Or. fr

Amendment 387

Arba Kokalari

Proposal for a regulation

Article 3 – paragraph 1 – point 8 – point c

Regulation (EU) 2016/679

Article 35 – paragraph 6a

Text proposed by the Commission

6. The Board shall prepare and transmit to the Commission a proposal for a common template for notifying a personal data breach to the competent supervisory authority referred to in paragraph 1 as well as for a list of the circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person. The proposals shall be submitted to the Commission within [OP date = nine months of the entry into application of this Regulation]. The Commission after due consideration reviews it, as necessary, and is empowered to adopt it by way of an

Amendment

6. The Board shall prepare and transmit to the Commission a proposal for a common template for notifying a personal data breach to the competent supervisory authority referred to in paragraph 1 as well as for a list of the circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person. The proposals shall be submitted to the Commission within [OP date = nine months of the entry into application of this Regulation]. The Commission after due consideration reviews it, as necessary, and is empowered to adopt it by way of an

implementing act in accordance with the examination procedure set out in Article 93(2).

implementing act in accordance with the examination procedure set out in Article 93(2). ***This shall not go beyond existing obligations under this Regulation or mandate any retroactive obligations.***

Or. en

Amendment 388

Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 8 – point c

Regulation (EU) 2016/679

Article 33 – paragraph 7

Text proposed by the Commission

7. The template and the list referred to in paragraph 6 shall be reviewed at least every three years and updated where necessary. The Board shall submit its assessment and possible proposals for updates to the Commission in due time. The Commission after due consideration of the proposals reviews them and is empowered to adopt any updates following the procedure in paragraph 6.

Amendment

7. The template and the list referred to in paragraph 6 shall be reviewed at least every three years and updated where necessary. The Board shall submit its assessment and possible proposals for updates to the Commission in due time. The Commission after due consideration of the proposals reviews them and is empowered to adopt any updates following the procedure in paragraph 6. ***If the Commission departs from the Board's proposed updates, it shall set out the reasons for doing so, and these reasons shall be made public at the same time as the adopted updates.***

Or. fr

Amendment 389

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 8 – point c

Regulation (EU) 2016/679

Article 33

7a. The submission of notifications, reports or other information provided for in this provision shall not reduce the scope, frequency or level of detail of the reporting obligations laid down in this Regulation or other applicable Union Law. The establishment of a single point of entry under this Article shall serve solely to simplify procedural aspects and ensure better coordination between competent authorities. It shall not result in lowering the level of data protection nor limit the power of supervisory authorities to request additional information, conduct investigations or require further reporting where necessary to guarantee compliance with this Regulation.

Or. en

Amendment 390

Morten Løkkegaard, Svenja Hahn, Jeannette Baljeu, Sandro Gozi

Proposal for a regulation

Article 3 – paragraph 1 – point 9 – point a

xx

xx

6. The Board shall prepare and transmit to the Commission a proposal for a common template and a common methodology for conducting data protection impact assessments.

6. The Board shall prepare and transmit to the Commission a proposal for a common template and a common methodology for conducting data protection impact assessments. **The template and methodology shall be proportionate, risk-based and easily usable by SMEs and small mid-cap enterprises, including in cross-border processing activities.**

Or. en

Justification

Keeps the simplification agenda credible for smaller businesses and not only for large compliance departments.

Amendment 391

Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 9 – point a

Regulation (EU) 2016/679

Article 35 – paragraph 6 a (new)

Text proposed by the Commission

Amendment

6a. The common template and methodology for conducting data protection impact assessments shall require the controller to evaluate the following:

(a) the risk of reidentification, including using algorithms, and taking into account the means reasonably likely to be used;

(b) the availability and suitability of state-of-the-art privacy-preserving and privacy-strengthening methods to remove or mitigate this risk, including pseudonymisation, encryption, aggregation, synthetic data, federated analytics and secure processing environments; and

(c) the risk remaining after applying such techniques.

Or. fr

Amendment 392

Morten Løkkegaard, Svenja Hahn, Jeannette Baljeu, Sandro Gozi

Proposal for a regulation

Article 3 – paragraph 1 – point 9 – point b

xx

xx

Text proposed by the Commission

6a. The proposals for the lists referred to in paragraphs 4 and 5 and for the template and methodology referred to in paragraph 6 shall be submitted to the Commission within [OP date = 9 months of the entry into application of this Regulation]. The Commission after due consideration reviews them, as necessary, and is empowered to adopt them by way of an implementing act in accordance with the examination procedure set out in Article 93(2).

Amendment

6a. The proposals for the lists referred to in paragraphs 4 and 5 and for the template and methodology referred to in paragraph 6 shall be submitted to the Commission within [OP date = 9 months of the entry into application of this Regulation]. The Commission after due consideration reviews them, as necessary, and is empowered to adopt them by way of an implementing act, ***which shall be directly applicable across the Union. Supervisory authorities shall not require controllers to use additional national templates, methodologies or lists for the same processing operations covered by that implementing act.*** in accordance with the examination procedure set out in Article 93(2).

Or. en

Justification

A common DPIA template only reduces burden if it prevents 27 additional national variants.

Amendment 393

Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 9 – point b

Regulation (EU) 2016/679

Article 35 – paragraph 6

Text proposed by the Commission

Amendment

6a. The proposals referred to in paragraphs 4, 5 and 6 shall be without prejudice to the right of the competent authorities and the supervisory authorities of the Member States to draw up their own guidance, standards and lists, in particular the lists referred to in Article 35(4) and (5). The Board shall take into account this national guidance and these national standards and lists

*when developing the common templates,
methodology and lists referred to in these
paragraphs.*

Or. fr

Amendment 394

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 10

Regulation (EU) 2016/679

new

Text proposed by the Commission

Amendment

10. The following article is added:

deleted

‘Article 41a

***(1) The Commission may adopt
implementing acts to specify means and
criteria to determine whether data
resulting from pseudonymisation no
longer constitutes personal data for
certain entities.***

***(2) For the purpose of paragraph 1 the
Commission shall:***

***(a) assess the state of the art of available
techniques;***

***(b) develop criteria and or categories for
controllers and recipients to assess the
risk of re-identification in relation to
typical recipients of data.***

***(3) The implementation of the means and
criteria outlined in an implementing act
may be used as an element to demonstrate
that data cannot lead to reidentification of
the data subjects.***

***(4) The Commission shall closely involve
the EDPB in the preparations of the
implementing acts. The EPDB shall issue
an opinion on the draft implementing acts
within a deadline of 8 weeks as of the***

receipt of the draft from the Commission.

(5) The Implementing Acts shall be adopted in accordance with the examination procedure referred to in Article 93(3).'

Or. en

Amendment 395
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 10
Regulation (EU) 2016/679
Article 41 a – paragraph 1

Text proposed by the Commission

(1) The Commission *may* adopt ***implementing acts to specify means and criteria*** to determine whether data ***resulting from pseudonymisation no longer constitutes*** personal data ***for certain entities***.

Amendment

(1) The Commission ***shall be authorised to adopt guidelines specifying technical and organisational measures, including consent management mechanisms, privacy-preserving technologies and privacy-strengthening methods, which may be taken into account*** to determine whether ***a processor, a subcontractor, a data holder or a data recipient has means which are reasonably likely to be used to identify a natural person and to fulfil the obligations relating to a request for consent. These guidelines shall be adopted in close cooperation with the European Data Protection Board and shall be aimed at improving legal certainty, interoperability and the consistent application of this Regulation throughout the Union. The adoption of these guidelines shall be without prejudice to the interpretation of Union law by the Court of Justice of the European Union, including as regards the notions of personal data, identifiable natural person, pseudonymised data, anonymisation and means reasonably likely to be used.***

Amendment 396
Piotr Müller

Proposal for a regulation
Article 3 – paragraph 1 – point 10
Regulation (EU) 2016/679
Article 41a – paragraph 2

Text proposed by the Commission

(a) assess the state of the art of available techniques;

Amendment

(a) assess the state of the art of available techniques, ***such as privacy enhancing technologies***;

Or. en

Amendment 397
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 10
Regulation (EU) 2016/679
Article 41 a – paragraph 3

Text proposed by the Commission

(3) The implementation ***of the means*** and criteria ***outlined in an implementing act*** may be ***used*** as an element to demonstrate that data ***cannot lead to*** reidentification of the data subjects.

Amendment

(3) The implementation, ***by a processor, a subcontractor, a data holder or a data recipient, of technical and organisational measures*** and criteria ***set out in the guidelines referred to in paragraph [1]*** may be ***referred to*** as an element ***which makes it possible*** to demonstrate that data ***are not, or are no longer, likely to allow the*** reidentification of the data subjects, ***and that the data subject has fulfilled his or her obligations, including those relating to the request for consent, under this Regulation.*** ***Consideration of these elements shall not affect the assessment of specific circumstances on a case-by-case basis by the competent supervisory authority or the***

Or. fr

Amendment 398

Piotr Müller

Proposal for a regulation

Article 3 – paragraph 1 – point 10

Regulation (EU) 2016/679

Article 41a – paragraph 3

Text proposed by the Commission

(3) ***The implementation of*** the means and criteria outlined in an implementing act ***may be used as an element to demonstrate that data cannot*** lead to reidentification of the data subjects.

Amendment

(3) ***Where*** the means and criteria outlined in an implementing act ***are implemented, the data shall be presumed not to*** lead to ***the*** reidentification of the data subjects.

Or. en

Justification

Turns advanced privacy-enhancing technologies into a rebuttable presumption of compliance, giving legal certainty and rewarding investment in privacy technology instead of paperwork.

Amendment 399

Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 10

Regulation (EU) 2016/679

Article 41 a – paragraph 5

Text proposed by the Commission

(5) ***The Implementing Acts shall be adopted in accordance with the examination procedure referred to in Article 93(3).'***

Amendment

deleted

Or. fr

Amendment 400
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 11
Regulation (EU) 2016/679
Article 57 – paragraph 1

Text proposed by the Commission

Amendment

11. In Article 57(1) is amended as follows:

deleted

(a) point (k) is deleted;

Or. fr

Amendment 401
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Article 3 – paragraph 1 – point 11 a (new)
Regulation (EU) 2016/679
Article 58 – paragraph 6 a (new)

Text proposed by the Commission

Amendment

11a. In Article 58, the following paragraph is added: ‘6a. The supervisory authorities’ investigative and corrective powers set out in Article 58(1) and (2) shall apply mutatis mutandis to providers of software to access online interfaces in the context of Article 88b even when they are not processing personal data.’

Or. en

Amendment 402
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 12

Regulation (EU) 2016/679
Article 64 – paragraph 1 - point a

Text proposed by the Commission

Amendment

12. In Article 64(1), point (a) is deleted.

deleted

Or. fr

Amendment 403
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 13
Regulation (EU) 2016/679
Article 70 – paragraph 1 – point h

Text proposed by the Commission

Amendment

13. In Article 70(1), point (h) is deleted.

deleted

Or. fr

Amendment 404
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 14
Regulation (EU) 2016/679
Article 70 – paragraph 1

Text proposed by the Commission

Amendment

(hca) publish guidelines on the pseudonymisation and anonymisation of personal data, including in connection with the development and use of AI models and systems, and on residual reidentification risk assessments, taking into account the means reasonably likely to be used;

Or. fr

Amendment 405

Piotr Müller

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88a – paragraph 1

Text proposed by the Commission

(1) Storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person ***is only allowed when that person has given his or her consent***, in accordance with this Regulation.

Amendment

(1) Storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person ***shall be lawful where processing of such data is carried out*** in accordance with this Regulation ***and is based on one of the legal bases set out in Article 6 of this Regulation***.

Or. en

Amendment 406

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

88 a new

Text proposed by the Commission

Amendment

(1a) A consumer shall not be denied access to a service or to a functionality of a service on the grounds that the person has not given consent under paragraph 1 to the storing of, or gaining of access to personal data in terminal equipment that is not strictly necessary for the provision of that service or functionality.

Or. en

Amendment 407
Piotr Müller

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88a – paragraph 2

Text proposed by the Commission

(2) *Paragraph 1 does not preclude storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person, based on Union or Member State law within the meaning of, and subject to the conditions of Article 6, to safeguard the objectives referred to in Article 23(1).*

Amendment

(2) *Where the processing referred to in paragraph 1 is based on legitimate interests pursuant to Article 6(1), point (f), of this Regulation (EU), the GDPR requires a balancing test to ensure that the company's interests do not override the user's rights and reasonable expectations, this principle should we always respect and strive to achieve the right balance.*

Or. en

Amendment 408
Piotr Müller

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88a – paragraph 3

Text proposed by the Commission

(3) *Storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person without consent, and subsequent processing, shall be lawful to the extent it is necessary for any of the following:*

Amendment

(3) *The following operational data processing activities shall not require consent under paragraph 1, and may rely on other applicable legal bases under Regulation (EU) 2016/679, subject to the conditions and safeguards set out in that Regulation:*

Or. en

Amendment 409
David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 a new

Text proposed by the Commission

(a) carrying out the transmission of an electronic communication over an electronic communications network;

Amendment

(a) carrying out the transmission of an electronic communication over an electronic communications network; ***such access shall be strictly limited to what is technically necessary for the sole purpose of transmitting the communication to ensure the highest level of consumer protection. Such access shall not be used for purposes unrelated to the transmission of the communication, including profiling, advertising, audience measurement, service optimisation, or the creation of behavioural or usage analytics.***

Or. en

Amendment 410

Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 a – paragraph 3 – point c

Text proposed by the Commission

(c) ***creating aggregated information about the usage of an online service to measure the audience of such a service, where it is carried out by the controller of that online service solely for its own use;***

Amendment

deleted

Or. fr

Amendment 411

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 a new

Text proposed by the Commission

(c) creating aggregated information about the usage of an online service to measure the audience of such a service, where it is carried out by the controller of that online service solely for its own use;

Amendment

(c) ***instantly*** creating aggregated ***and anonymous measurement*** information about the usage of an online service to measure the audience of such a service, where ***such measurement*** it is carried out by the controller of that online service solely for its own use,; ***is restricted to aggregated statistical counting does not enable the identification, tracking or profiling of consumers beyond what is strictly necessary for aggregated statistics and does not involve the creation of persistent identifiers, provided that the data is not combined with data from other services from the same provider or from a third party or made accessible to third parties, subject to provisions laid down in Regulation (EU) 2022/1925 or otherwise processed for purposes such as profiling, advertising, the optimisation of services beyond audience measurement, or the training of artificial intelligence systems, and provided that data subjects are given effective means to object without affecting the usability of the service.***

Or. en

Amendment 412

Christian Doleschal

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88a paragraph 3c

Text proposed by the Commission

(c) **creating** aggregated information about the usage of an online service to measure the audience of such a service, where it is carried out by the controller of that online service solely for its own use;

Amendment

(c) **measuring the audience of an online service in order to draw** aggregated information about the usage of an online service to measure the audience of such a service, **as defined by article 2 (16) of Regulation 2024/1083**, where it is carried out by the controller of that online service solely for its own use **or by entitled third parties jointly authorised by advertisers and publishers, solely for the measurement of the overall market performance and subject to the safeguards laid down in Article 89(1)**;

Or. en

Amendment 413
Sabine Verheyen

Proposal for a regulation
Article 3 – paragraph 1 – point 15
GDPR
Art. 26

Text proposed by the Commission

(c) **creating** aggregated information about the usage of an online service to measure the audience of such a service, where it is carried out by **the controller of** that online service solely for **its own use**;

Amendment

(c) **measuring the audience of an online service as defined in Article 2(16) of Regulation 2024/1083 to create** aggregated information about the usage of an online service to measure the audience of such a service, where it is carried out by that online service **or by entitled third parties jointly authorised by advertisers or publishers**, solely for **the measurement of the overall market performance and subject to the safeguards laid down in Article 89(1)**;

Or. en

Amendment 414
Piotr Müller

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88a – paragraph 3 (c)

Text proposed by the Commission

(c) ***creating aggregated information about the usage of an online service to measure the audience of such a service, where it is carried out by the controller of that online service solely for its own use;***

Amendment

(c) ***measuring or improving the performance, security or functionality of an online service, including through testing and the creation of aggregated usage information, where such processing is carried out solely for the controller's own use, the prevention of fraud or other risky behaviour or technical incidents***

Or. en

Amendment 415

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 a new

Text proposed by the Commission

(d) ***maintaining or restoring the security of a service provided by the controller and requested by the data subject or the terminal equipment used for the provision of such service.***

Amendment

(d) ***maintenance or restoration of the security of a service provided by the controller and requested explicitly by the data subject provided that it is limited to what is strictly necessary for ensuring a specific security purpose or addressing concrete security vulnerabilities or incidents affecting the requested service or device. Measures under this point shall not alter the functionality of the hardware or software, or the privacy settings chosen by the consumer, unrelated to that purpose. Access shall not be used to generate persistent identifiers, behavioural profiles, or long-term activity logs, nor shall it introduce device fingerprinting, device graphing, or similar***

techniques enabling tracking across services or applications.

Or. en

Amendment 416
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88 a – paragraph 3 – point d

Text proposed by the Commission

(d) maintaining or restoring the security of a service provided by the controller and requested by the data subject or the terminal equipment used for the provision of such service.

Amendment

(d) maintaining or restoring the ***integrity or*** security of a service provided by the controller and requested by the data subject or the terminal equipment used for the provision of such service.

Or. fr

Amendment 417
Piotr Müller

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88a – paragraph 3 (d)

Text proposed by the Commission

(d) maintaining ***or*** restoring the security of a service ***provided by the controller and requested by the data subject*** or the terminal equipment used for the provision of such service.

Amendment

(d) maintaining, restoring ***or ensuring*** the security of a service or ***of*** the terminal equipment used for the provision of such service.

Or. en

Amendment 418
David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 a new

Text proposed by the Commission

Amendment

(da) measuring the display and performance of contextual advertising provided that the processing of personal data is strictly limited to the activities falling under the definition in Article 4 (b) (xx), provided that consumers data including possibly identifying data and metadata is deleted immediately after the browsing session is closed and provided any data collection and processing for this purpose is kept within what is strictly necessary and in respect of the data minimisation principle and purpose limitation as set out in Articles 5(1)(b) and 5 (1)(c);

This provision can be invoked only where the controller is able to demonstrate, upon request by a Data Protection Authority, that it uses exclusively temporary, transient, non-persistent tracking technologies immediately deleted after the browsing session and technically designed to expire automatically at the moment the advertisement has been displayed and any strictly necessary measurement of its display or performance has occurred..

Or. en

Amendment 419

Piotr Müller

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88a – paragraph 3

Text proposed by the Commission

Amendment

(da) analytics and audience measurement for the purpose of understanding aggregate service usage or advertising campaign performance, provided the results are not used to profile individual users;

Or. en

Amendment 420

Piotr Müller

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88a – paragraph 3

Text proposed by the Commission

Amendment

(db) direct marketing communications addressed to existing customers in respect of the controller's own products and services, in accordance with applicable rules;

Or. en

Amendment 421

Piotr Müller

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88a – paragraph 3

Text proposed by the Commission

Amendment

(dc) processing strictly necessary for the detection and prevention of cyberattacks, fraud, and unauthorised access, and for the maintenance of technical service performance;

Amendment 422
Piotr Müller

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88a – paragraph 3

Text proposed by the Commission

Amendment

(dd) frequency capping of advertising within a single service environment, where no cross-service tracking or persistent profiling is involved;

Or. en

Amendment 423
Piotr Müller

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88a – paragraph 3

Text proposed by the Commission

Amendment

(de) processing where the controller deploys recognised privacy-enhancing technologies (PETs) that effectively mitigate risks to the rights and freedoms of data subjects, in accordance with the technical specifications adopted pursuant to paragraph 4, 5 and 6.

Or. en

Amendment 424
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 a new – paragraph 3 a (new)

Text proposed by the Commission

Amendment

(3a) Personal data of consumers accessed pursuant to paragraph 3 shall be processed only insofar as strictly necessary for the purpose of justifying the access and shall not be further processed for incompatible purposes to ensure the highest level of consumer protection. Article 6(4) shall not apply to such processing. Personal data of consumers accessed pursuant to paragraph 3 shall be deleted or rendered anonymous immediately after the purpose justifying the access has been fulfilled.

Or. en

Amendment 425

Piotr Müller

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88a – paragraph 4

Text proposed by the Commission

Amendment

(4) Where storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person is based on consent, the following shall apply:

deleted

(a) the data subject shall be able to refuse requests for consent in an easy and intelligible manner with a single-click button or equivalent means;

(b) if the data subject gives consent, the controller shall not make a new request for consent for the same purpose for the period during which the controller can

lawfully rely on the consent of the data subject;

(c) if the data subject declines a request for consent, the controller shall not make a new request for consent for the same purpose for a period of at least six months.

This paragraph also applies to the subsequent processing of personal data based on consent.

Or. en

Amendment 426
Sabine Verheyen

Proposal for a regulation
Article 3 – paragraph 1 – point 15
GDPR
Article 88a (4)

Text proposed by the Commission

Amendment

(4) Where storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person is based on consent, the following shall apply:

deleted

(a) the data subject shall be able to refuse requests for consent in an easy and intelligible manner with a single-click button or equivalent means;

(b) if the data subject gives consent, the controller shall not make a new request for consent for the same purpose for the period during which the controller can lawfully rely on the consent of the data subject;

(c) if the data subject declines a request for consent, the controller shall not make a new request for consent for the same purpose for a period of at least six months.

This paragraph also applies to the

*subsequent processing of personal data
based on consent.*

Or. en

Amendment 427

Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 a

Text proposed by the Commission

Where storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person is based on consent, the ***following shall apply:***

Amendment

Where storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person is based on consent, the ***consent shall only be valid if it is freely given, specific, informed and unambiguous, and takes the form of a statement or a clear affirmative action, in accordance with Article 4, point (11), and Article 7 of this Regulation, in accordance with Guidelines 05/2020 of the European Data Protection Board on consent. It must be as easy for the data subject to refuse or withdraw consent as it was to give consent, and any such refusal or withdrawal must be without detriment. The interface used to request, give, refuse or withdraw consent shall be designed, organised and used in accordance with Article 25 of Regulation (EU) 2022/2065 and must not deceive or manipulate the data subject or materially distort or impair his or her ability to make free and informed decisions.***

Or. fr

Amendment 428

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 a new

Text proposed by the Commission

(a) the ***data subject*** shall be able to refuse requests for consent ***in an easy and intelligible*** manner with a single-click button or equivalent means;

Amendment

(a) the ***consumer*** shall be able ***to exercise their choice*** to refuse requests for consent ***or withdraw consent in a consumer-friendly, accessible, n and easy*** manner with a single-click button or equivalent means; ***it shall be as easy to refuse or withdraw consent as to give it;***

Or. en

Amendment 429

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 a new

Text proposed by the Commission

Amendment

(aa) ***consent that uses unfair commercial practices that influence or manipulate the free and genuine consumer choice to consent shall make consent void;***

Or. en

Amendment 430

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 a new

Text proposed by the Commission

(b) if the data subject gives consent, the controller shall not make a new request for consent for the same purpose for the period during which the controller can lawfully rely on the consent of the data subject;

Amendment

(b) if the data subject gives consent, the controller shall not make a new request for consent for the same purpose for the period during which the controller can lawfully rely on the consent of the data subject;

When a user has refused or withdrawn consent, electronic communications service providers and third parties may not seek the user's consent again until one year has elapsed from the date of the user's decision for the same processing purpose.

Or. en

Amendment 431

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 a new

Text proposed by the Commission

(c) if the data subject declines a request for consent, the controller shall not make a new request for consent for the same purpose for a period of at least six months.

Amendment

(c) if the data subject declines a request for consent, the controller shall not make a new request for consent for the same purpose for a period of at least six months.
Cross-service tracking techniques or data reuse for incompatible purposes shall also be excluded in line with provision under Regulation (EU) 2022/1925.

Or. en

Amendment 432

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88a new

Text proposed by the Commission

This paragraph also applies to the subsequent processing of personal data based on consent.

Amendment

New requests for consent within these periods, precludes consent from being validly granted. This paragraph also applies to the subsequent processing of personal data based on consent.

Or. en

Amendment 433

Piotr Müller

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88a – paragraph 4

Text proposed by the Commission

Amendment

(4a) The Commission may adopt implementing acts to specify the technical standards and criteria to determine whether a technology qualifies as a recognised Privacy Enhancing Technology (PET) and effectively mitigates risks as referred to in paragraph 3.

Or. en

Amendment 434

Piotr Müller

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88a

Text proposed by the Commission

Amendment

(4b) For the purpose of paragraph 4 the Commission shall: (a) assess the state of the art of available technologies; (b) develop criteria to assess the effectiveness of risk mitigation in relation to the specific categories of data and processing operations.

Or. en

Amendment 435

Piotr Müller

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88a

Text proposed by the Commission

Amendment

(4c) The Commission shall closely involve the EDPB in the preparations of the implementing acts. The EDPB shall issue an opinion on the draft implementing acts within a deadline of 8 weeks as of the receipt of the draft from the Commission. The Implementing Acts shall be adopted in accordance with the examination procedure referred to in Article 93(3).

Or. en

Amendment 436

Sabine Verheyen

Proposal for a regulation

Article 3 – paragraph 1 – point 15

REGULATION (EU) 2016/679

Article 22

Text proposed by the Commission

Amendment

Article 88b

deleted

Amendment 437
Sophia Kircher

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88

Text proposed by the Commission

Amendment

Article 88b

deleted

Or. en

Justification

The objective of reducing consent fatigue is supported. However, this proposal raises concerns that require further consideration, including its potential impact on the media sector, the disproportionate effects it could have on SMEs by favouring larger market players, and the risk of creating new gatekeepers. It is also unclear why the proposal is limited to browsers. The proposal would benefit from substantial clarification and a clearer specification of how it is intended to operate in practice, including with regard to the requested standardisation process and the practical implementation of any resulting standards.

Amendment 438
Piotr Müller

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88b

Text proposed by the Commission

Amendment

Article 88b

deleted

Or. en

Amendment 439
Piotr Müller

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88b

Text proposed by the Commission

Amendment

*Automated and machine-readable
indications of data subject's choices with
respect to processing of personal data in
the terminal equipment of natural persons*

deleted

Or. en

Amendment 440
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88b

Text proposed by the Commission

Amendment

Automated and machine-readable
indications of *data subject's choices* with
respect to processing of personal data in
the terminal equipment of natural persons

Automated and machine-readable
indications of *the expressed consumer
choice* with respect to processing of,
storing of or gaining access to personal
data in the terminal equipment of natural
persons

Or. en

Amendment 441
Piotr Müller

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88b

Text proposed by the Commission

Amendment

(1) Controllers shall ensure that their

deleted

online interfaces allow data subjects to:

(a) Give consent through automated and machine-readable means, provided that the conditions for consent laid down in this Regulation are fulfilled;

(b) decline a request for consent and exercise the right to object pursuant to Article 21(2) through automated and machine-readable means.

Or. en

Amendment 442
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88 b – paragraph 1

Text proposed by the Commission

(1) Controllers shall ensure that their online interfaces *allow data subjects to:*

Amendment

(1) *Providers of web browsers, websites, operating systems and applications shall provide technical means allowing data subjects to express, using automated and machine-readable indications, their choice to consent, refuse a consent request or exercise their right to object in accordance with Article 21(2). These means must be interoperable so as to ensure that an indication at any level, whether it be a terminal, an operating system, a browser, an application or a website, is recognised and taken into account at different levels; these means must not constitute a single mandatory mechanism.* Controllers shall ensure that their online interfaces *recognise and take into account these indications, provided that the conditions of consent under this Regulation are fulfilled.*

Or. fr

Amendment 443

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b

Text proposed by the Commission

(1) Controllers shall ensure that their online interfaces allow **data subjects** to:

Amendment

(1) ***For the purpose of consumer's consent to exercise their rights under this Regulation, notably the storing of their personal data, or gaining of access to personal data already stored in the terminal equipment of a natural person in accordance with Directive 2002/58/EC,*** controllers shall ensure that their online interfaces allow **consumers** to:

Or. en

Amendment 444

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b

Text proposed by the Commission

Amendment

(-a) receive all information enabling the consumer to make an informed choice to consent or object to the processing and exercise his or her rights under the regulation

Or. en

Justification

This addition is to allow the consumer to get the necessary information ahead of making a decision and ensures coherence across the signal chain. This ensures that a simple comparison is possible and to quickly understand the relevant parts of the request.

Amendment 445

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b

Text proposed by the Commission

(a) ***Give*** consent ***through automated and machine-readable means***, provided that the conditions for consent laid down in ***this Regulation*** are fulfilled;

Amendment

(a) ***Allow the consumer to Give specific*** consent ***per controller and per purpose***, provided that the conditions for consent laid down in ***Regulation 2016/679*** are fulfilled ***and therefore that consent is kept, among the others, free, based on the prior provision of clear and comprehensive information and allows consumer choice for specific purposes and a specific identifiable controller;***

Or. en

Justification

Consent for consumers needs to be informed and can therefore not be automated. This is to amend the wording accordingly and make it workable for consumers.

Amendment 446

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b

Text proposed by the Commission

(b) ***decline a request for*** consent ***and exercise the right to object pursuant to Article 21(2) through automated and machine-readable means.***

Amendment

(b) ***to refuse*** consent ***or otherwise object to processing activities under Art. 21(2) of Regulation 2016/979;***

Amendment 447

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b

Text proposed by the Commission

Amendment

(ba) withdraw consent through automated and machine-readable means previously given, in accordance with Article 7(3) of this Regulation. Where an active refusal signal is present, storing of, or gaining access to, personal data in terminal equipment shall not take place. A consumer's withdrawal of consent through automated and machine-readable signals, as provided for under this article, shall have the legal automatic consequence of prohibiting the storing of information, or the gaining of access to information already stored, in the terminal equipment of that user related to that processing activity pursuant to Article 88a of this Regulation and in compliance with Article 5 of Directive 2002/58/EC.

Or. en

Amendment 448

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b

Text proposed by the Commission

Amendment

(bb) object to subsequent processing transmitted through browser, operating system, application-level or user agent

Or. en

Amendment 449
Piotr Müller

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88b

Text proposed by the Commission

Amendment

(2) Controllers shall respect the choices made by data subjects in accordance with paragraph 1.

deleted

Or. en

Amendment 450
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88b

Text proposed by the Commission

Amendment

(2) Controllers shall respect the choices made by data subjects in accordance with paragraph 1.

(2) Controllers *and any other party involved in the generation, management, transmission and application of automated and machine readable signals,* shall respect *and give effect to* the choices made by data subjects in accordance with paragraph 1.

Or. en

Amendment 451

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b

Text proposed by the Commission

Amendment

(3) Paragraphs 1 and 2 shall not apply to controllers that are media service providers when providing a media service. *deleted*

Or. en

Amendment 452

Piotr Müller

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b

Text proposed by the Commission

Amendment

(3) Paragraphs 1 and 2 shall not apply to controllers that are media service providers when providing a media service. *deleted*

Or. en

Amendment 453

Christian Doleschal

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b paragraph 4

Text proposed by the Commission

Amendment

(4) The Commission shall, in accordance with Article 10(1) of *deleted*

Regulation (EU) 1025/2012, request one or more European standardisation organisations to draft standards for the interpretation of machine-readable indications of data subjects' choices.

Online interfaces of controllers which are in conformity with harmonised standards or parts thereof the references of which have been published in the Official Journal of the European Union shall be presumed to be in conformity with the requirements covered by those standards or parts thereof, set out in paragraph 1.

Or. en

Amendment 454
Arba Kokalari

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88b (new)

Text proposed by the Commission

Amendment

(4) The Commission shall, in accordance with Article 10(1) of Regulation (EU) 1025/2012, request one or more European standardisation organisations to draft standards for the interpretation of machine-readable indications of data subjects' choices.

deleted

Online interfaces of controllers which are in conformity with harmonised standards or parts thereof the references of which have been published in the Official Journal of the European Union shall be presumed to be in conformity with the requirements covered by those standards or parts thereof, set out in paragraph 1.

Or. en

Amendment 455
Piotr Müller

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88b

Text proposed by the Commission

Amendment

(4) The Commission shall, in accordance with Article 10(1) of Regulation (EU) 1025/2012, request one or more European standardisation organisations to draft standards for the interpretation of machine-readable indications of data subjects' choices. *deleted*

Online interfaces of controllers which are in conformity with harmonised standards or parts thereof the references of which have been published in the Official Journal of the European Union shall be presumed to be in conformity with the requirements covered by those standards or parts thereof, set out in paragraph 1.

Or. en

Amendment 456
Arba Kokalari

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88b (new)

Text proposed by the Commission

Amendment

The Commission shall, in accordance with Article 10(1) of Regulation (EU) 1025/2012, request one or more European standardisation organisations to draft standards for the interpretation of machine-readable indications of data subjects' choices. *deleted*

Amendment 457**David Cormand**

on behalf of the Verts/ALE Group

Proposal for a regulation**Article 3 – paragraph 1 – point 15**

Regulation (EU) 2016/679

Article 88b

Text proposed by the Commission

The Commission shall, in accordance with Article 10(1) of Regulation (EU) 1025/2012, request one or more European standardisation organisations to draft standards for the interpretation of machine-readable indications of data subjects' choices.

Amendment

The Commission shall, in accordance with Article 10(1) of Regulation (EU) 1025/2012, request one or more European standardisation organisations to draft standards for the interpretation of machine-readable indications of data subjects' choices ***as it regards their design and their technical standards and covering the requirements of paragraph 1. In particular, such a request shall set out essential safeguards to the interpretation of automated signals and at minimum lay down detailed rules and standards to:***

(a) guarantee privacy by default and design in accordance with Article 25 of this Regulation;

(b) present minimum technical requirements for ensuring that an active refusal signal prevents the storing of, or gaining access to, personal data in terminal equipment without requiring further interaction with the data subject;

(c) guarantee that such mechanisms are neutral and do not favour specific services, software or interfaces

(d) provide detailed guidance on how to ensure neutral interfaces, with specific attention to avoid any type of dark patterns, deceptive and non-neutral elements in the design of the interface with data subjects, and in full respect of the principle of fairness;

(e) define interoperability requirements for the transmission and recognition of signals.

At least for the interaction between web browsers and websites, as well as mobile operating systems and mobile applications, such a request shall be made by [insert the date: 3 months following the date of entry into force of this Regulation].

Or. en

Amendment 458
Arba Kokalari

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88b (new)

Text proposed by the Commission

Amendment

Online interfaces of controllers which are in conformity with harmonised standards or parts thereof the references of which have been published in the Official Journal of the European Union shall be presumed to be in conformity with the requirements covered by those standards or parts thereof, set out in paragraph 1.

deleted

Or. en

Amendment 459
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88b

Text proposed by the Commission

Amendment

Online interfaces of controllers which are in conformity with harmonised standards or parts thereof the references of which have been published in the Official Journal of the European Union shall be presumed to be in conformity with the requirements covered by those standards or parts thereof, set out in paragraph 1.

The Commission shall adopt delegated acts establishing common specifications for the requirements set out in paragraph 1 if the following conditions are fulfilled:

(a) the Commission has requested one or more European standardisation organisations to draft harmonised standards as set out in paragraph 4, and:

(i) the request has not been accepted by any of the European standardisation organisations; or

(ii) the harmonised standards addressing that request are not delivered within the deadline set in accordance with Article 10(1) of Regulation (EU) No 1025/2012; or

(iii) the harmonised standards do not comply with the request; and

(b) no reference to harmonised standards covering the requirements set out in paragraph 1 has been published in the Official Journal of the European Union in accordance with Regulation (EU) No 1025/2012 and no such reference is expected to be published within a reasonable period. Those implementing acts shall be adopted in accordance with the examination procedure referred to in Article 93(2).

Or. en

Amendment 460
Piotr Müller

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88b

Text proposed by the Commission

Amendment

(5) Paragraphs 1 and 2 shall apply from [OP: please insert the date = 24 months following the date of entry into force of this Regulation]. *deleted*

Or. en

Amendment 461

Piotr Müller

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b

Text proposed by the Commission

Amendment

(6) Providers of web browsers, which are not SMEs, shall provide the technical means to allow data subjects to give their consent and to refuse a request for consent and exercise the right to object pursuant to Article 21(2) through the automated and machine-readable means referred to in paragraph 1 of this Article, as applied pursuant to paragraphs 2 to 5 of this Article. *deleted*

Or. en

Amendment 462

Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 b

Text proposed by the Commission

Amendment

(6) Providers of web browsers, which are not SMEs, shall provide the technical means to allow data subjects to give their

(6) Providers of web browsers, which are not SMEs, shall provide, *but not impose by default*, the technical means to

consent and to refuse a request for consent and exercise the right to object pursuant to Article 21(2) through the automated and machine-readable means referred to in paragraph 1 of this Article, as applied pursuant to paragraphs 2 to 5 of this Article.

allow data subjects to give their consent and to refuse a request for consent and exercise the right to object pursuant to Article 21(2) through the automated and machine-readable means referred to in paragraph 1 of this Article, as applied pursuant to paragraphs 2 to 5 of this Article. ***This paragraph shall not affect the possibility of processors obtaining explicit consent by other means, and shall apply in accordance with the principle of technological neutrality.***

Or. fr

Amendment 463

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b

Text proposed by the Commission

(6) Providers of web browsers, ***which are not SMEs***, shall provide the technical means to ***allow data subjects to give their consent and to refuse a request for consent and exercise the right to object pursuant to Article 21(2) through the automated and machine-readable means referred to in paragraph 1 of this Article, as applied pursuant to paragraphs 2 to 5 of this Article.***

Amendment

(6) Providers of ***software to access interfaces such as mobile operating systems or web browsers, operating systems applications and any other actor operating in the signal chain*** shall provide the technical means to exercise the ***choices in paragraph 1 of this Article*** through the automated and machine-readable means ***therein.***

Or. en

Amendment 464

Piotr Müller

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b

Text proposed by the Commission

Amendment

(7) **Paragraph 6 shall apply from [OP: please insert the date = 48 months following the date of entry into force of this Regulation].** *deleted*

Or. en

Amendment 465

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b

Text proposed by the Commission

Amendment

(7) Paragraph 6 shall apply from [OP: please insert the date = **48** months following the date of entry into force of this Regulation].

(7) Paragraph 6 shall apply from [OP: please insert the date = **18** months following the date of entry into force of this Regulation].

Or. en

Amendment 466

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b – 7 a new

Text proposed by the Commission

Amendment

(7a) Providers of web browsers, operating systems and applications and any other actor operating in the automated machine-readable signals chain, shall not process choices expressed

by the consumer referred to in paragraph 1 for any other purpose than transmitting, generating, managing and applying the signal to providers of online interfaces. Usage of signal data is prohibited for advertising, profiling, analytics, measurement, service optimisation, self-preferencing, cross-service linking, retention or any secondary purpose.

Or. en

Amendment 467

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88c

Text proposed by the Commission

Amendment

Article 88c

deleted

Or. en

Amendment 468

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88c

Text proposed by the Commission

Amendment

Processing in the context of the development and operation of AI

deleted

Or. en

Amendment 469
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88 c

Text proposed by the Commission

Processing in the context of the
development and operation of AI

Amendment

Processing in the context of the
development and operation of **innovative
technologies, including AI**

Or. fr

Amendment 470
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88c

Text proposed by the Commission

*Where the processing of personal data is
necessary for the interests of the
controller in the context of the
development and operation of an AI
system as defined in Article 3, point (1), of
Regulation (EU) 2024/1689 or an AI
model, such processing may be pursued
for legitimate interests within the meaning
of Article 6(1)(f) of Regulation (EU)
2016/679, where appropriate, except
where other Union or national laws
explicitly require consent, and where such
interests are overridden by the interests,
or fundamental rights and freedoms of
the data subject which require protection
of personal data, in particular where the
data subject is a child.*

Amendment

deleted

Or. en

Amendment 471
Kateřina Konečná

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88c(new)

Text proposed by the Commission

Amendment

Where the processing of personal data is necessary for the interests of the controller in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, such processing may be pursued for legitimate interests within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679, where appropriate, except where other Union or national laws explicitly require consent, and where such interests are overridden by the interests, or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

deleted

Or. en

Amendment 472
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88 c

Text proposed by the Commission

Amendment

Where the processing of personal data is necessary for the interests of the controller in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU)

The processing of personal data necessary for the interests *legitimately pursued by* the controller may be *carried out* within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679, where

2024/1689 or an AI model, such processing may be **pursued for legitimate interests** within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679, where appropriate, except where other Union or national laws explicitly require consent, and where such interests are overridden by the interests, or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

appropriate, except where other Union or national laws explicitly require consent, and where such interests are overridden by the interests, or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

Or. fr

Amendment 473
Sophia Kircher

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Article 88
Regulation (EU) 2016/679 (GDPR)

Text proposed by the Commission

Where the processing of personal data is necessary for the interests of the controller in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, such processing may be pursued for legitimate interests within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679, **where appropriate**, except where other Union **or national** laws explicitly require consent, and where such interests are overridden by the interests, or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

Amendment

Where the processing of personal data is necessary for the interests of the controller, **or a third party**, in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, **including a general-purpose AI model as defined in Article 3, point (63) of Regulation (E) 2024/1689**, such processing may be pursued for legitimate interests within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679 except where other Union laws explicitly require consent, and where such interests are overridden by the interests, or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

Or. en

Justification

Allowing Member States to regulate this issue through national law could lead to regulatory fragmentation across the Union. In addition, excluding the assessment of third-party interests from the legitimate interests balancing test may unduly restrict the flexibility available to AI developers and could hinder innovation. Furthermore, there are concerns from media companies regarding the practical feasibility of this approach. In particular, it would be extremely difficult to obtain and manage the consent of actors and performers throughout the production cycle, especially where consent would need to be secured upfront and managed after production has been completed. It is therefore unclear how this obligation would work in practice. It should also be clarified whether these situations are already covered by Article 21, in which case the proposed provision may be unnecessary or duplicative.

Amendment 474

Arba Kokalari

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88c (new)

Text proposed by the Commission

Where the processing of personal data is necessary for the interests of the controller in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, such processing may be pursued for legitimate interests within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679, **where appropriate**, except where other Union or national laws explicitly require consent, and where such interests are overridden by the interests, or fundamental rights and freedoms of the data subject **which require protection of personal data**, in particular where the data subject is a child.

Amendment

Where the processing of personal data is necessary for the interests of the controller in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, such processing may be pursued for legitimate interests within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679 except where other Union or national laws explicitly require consent, and where such interests are overridden by the interests, or fundamental rights and freedoms of the data subject **in accordance with Articles 6 and 21 of this Regulation**, in particular where the data subject is a child.

Or. en

Amendment 475

Arba Kokalari

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88c (new)

Text proposed by the Commission

Where the processing of personal data is necessary for the interests of the controller in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, such processing may be pursued for legitimate interests within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679, **where appropriate**, except where other Union or national laws explicitly require consent, and where such interests are overridden by the interests, or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

Amendment

Where the processing of personal data is necessary for the interests of the controller in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, such processing may be pursued for legitimate interests within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679, except where other Union or national laws explicitly require consent, and where such interests are overridden by the interests, or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

Or. en

Amendment 476

Virginie Joron

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88 c

Text proposed by the Commission

Amendment

The development and operation of an AI model or system shall be an example of such a legitimate interest, without prejudice to other existing innovative technologies or future technological uses. The assessment shall be technologically neutral and shall depend on the purposes of the processing, including, as regards AI, the purpose stated within the meaning of Regulation (EU) 2024/1689.

Amendment 477

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88c

Text proposed by the Commission

Amendment

Any such processing shall be subject to appropriate organisational, technical measures and safeguards for the rights and freedoms of the data subject, such as to ensure respect of data minimisation during the stage of selection of sources and the training and testing of AI an system or AI model, to protect against non-disclosure of residually retained data in the AI system or AI model to ensure enhanced transparency to data subjects and providing data subjects with an unconditional right to object to the processing of their personal data.

deleted

Or. en

Amendment 478

Kateřina Konečná

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88c(new)

Text proposed by the Commission

Amendment

Any such processing shall be subject to appropriate organisational, technical measures and safeguards for the rights and freedoms of the data subject, such as to ensure respect of data minimisation

deleted

during the stage of selection of sources and the training and testing of AI an system or AI model, to protect against non-disclosure of residually retained data in the AI system or AI model to ensure enhanced transparency to data subjects and providing data subjects with an unconditional right to object to the processing of their personal data.

Or. en

Amendment 479
Virginie Joron

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88 c

Text proposed by the Commission

Any such processing shall be subject to appropriate organisational, technical measures and safeguards for the rights and freedoms of the data subject, such as to ensure respect of data minimisation during the stage of selection of sources *and* the training and testing of AI an system or AI model, to protect ***against non-disclosure of*** residually retained data in the AI system or AI model to ensure enhanced transparency ***to*** data subjects and providing data subjects with an unconditional right to object to the processing of their personal data.

Amendment

Any such processing shall be subject to appropriate organisational, technical measures and safeguards for the rights and freedoms of the data subject, such as to ensure respect of data minimisation during the stage of selection of sources ***as well as during*** the training and testing of AI an system or AI model, to protect residually retained data in the AI system or AI model ***against any disclosure***, to ensure enhanced transparency ***in respect of*** data subjects and providing data subjects with an unconditional right to object to the processing of their personal data. ***If the processing is carried out within a high-risk AI system within the meaning of Regulation (EU) 2024/1689, or within an AI regulatory sandbox or during testing in real world conditions under this Regulation, it shall comply with the conditions and safeguards provided for in Articles 14, 59, 60 and 61 of this Regulation respectively, which shall continue to apply.***

Amendment 480
Sophia Kircher

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88

Text proposed by the Commission

Any such processing shall be subject to appropriate organisational, technical measures and safeguards for the rights and freedoms of the data subject, such as to ensure respect of data minimisation during the stage of selection of sources and the training and testing of AI an system or AI model, to protect against non-disclosure of residually retained data in the AI system or AI model to ensure enhanced transparency to data subjects and providing data subjects with ***an unconditional right to object to the processing of their personal data.***

Amendment

Any such processing shall be subject to appropriate ***and legal*** organisational, technical measures and safeguards for the rights and freedoms of the data subject, such as to ensure respect of data minimisation during the stage of selection of sources and the training and testing of AI an system or AI model, to protect against non-disclosure of residually retained data in the AI system or AI model to ensure enhanced transparency to data subjects and providing data subjects with ***appropriate rights as outlined in Article 21 of Regulation (EU) 2016/679 .***

Or. en

Amendment 481
Arba Kokalari

Proposal for a regulation
Article 3 – paragraph 1 – point 15
Regulation (EU) 2016/679
Article 88c (new)

Text proposed by the Commission

Amendment

The Commission shall issue guidelines on the assessment of legitimate interests in the context of training and testing of AI systems and AI models.

Or. en

Amendment 482
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Article 3 b (new)
Regulation (EU) 2016/679
Article 83

Present text

1. Each supervisory authority shall ensure that the imposition of administrative fines pursuant to this Article in respect of infringements of this Regulation referred to in paragraphs 4, 5 and 6 shall in each individual case be effective, proportionate and dissuasive. 2. Administrative fines shall, depending on the circumstances of each individual case, be imposed in addition to, or instead of, measures referred to in points (a) to (h) and (j) of Article 58(2). When deciding whether to impose an administrative fine and deciding on the amount of the administrative fine in each individual case due regard shall be given to the following: (a) the nature, gravity and duration of the infringement taking into account the nature scope or purpose of the processing concerned as well as the number of data subjects affected and the level of damage suffered by them; (b) the intentional or negligent character of the infringement; (c) any action taken by the controller or processor to mitigate the damage suffered by data subjects; (d) the degree of responsibility of the controller or processor taking into account technical and organisational measures implemented by them pursuant to Articles 25 and 32; (e) any relevant previous infringements by the controller or processor; (f) the

Amendment

Article 3 b (new)

Article 83

The following paragraph is added:

"10. The preceding provisions shall apply mutatis mutandis to providers of software to access online interfaces in the context of Article 88b(6) even when they are not processing personal data."

degree of cooperation with the supervisory authority, in order to remedy the infringement and mitigate the possible adverse effects of the infringement;(g)the categories of personal data affected by the infringement;(h)the manner in which the infringement became known to the supervisory authority, in particular whether, and if so to what extent, the controller or processor notified the infringement;(i)where measures referred to in Article 58(2) have previously been ordered against the controller or processor concerned with regard to the same subject-matter, compliance with those measures;(j)adherence to approved codes of conduct pursuant to Article 40 or approved certification mechanisms pursuant to Article 42; and(k)any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits gained, or losses avoided, directly or indirectly, from the infringement.

3. If a controller or processor intentionally or negligently, for the same or linked processing operations, infringes several provisions of this Regulation, the total amount of the administrative fine shall not exceed the amount specified for the gravest infringement.

4. Infringements of the following provisions shall, in accordance with paragraph 2, be subject to administrative fines up to 10 000 000 EUR, or in the case of an undertaking, up to 2 % of the total worldwide annual turnover of the preceding financial year, whichever is higher:

- (a)the obligations of the controller and the processor pursuant to Articles 8, 11, 25 to 39 and 42 and 43;*
- (b)the obligations of the certification body pursuant to Articles 42 and 43;*
- (c)the obligations of the monitoring body pursuant to Article 41(4).*

5. Infringements of the following provisions shall, in accordance with paragraph 2, be subject to administrative fines up to 20 000 000 EUR, or in the case of an undertaking, up to 4 % of the total worldwide annual

turnover of the preceding financial year, whichever is higher:(a)the basic principles for processing, including conditions for consent, pursuant to Articles 5, 6, 7 and 9;(b)the data subjects' rights pursuant to Articles 12 to 22;(c)the transfers of personal data to a recipient in a third country or an international organisation pursuant to Articles 44 to 49;(d)any obligations pursuant to Member State law adopted under Chapter IX;(e)non-compliance with an order or a temporary or definitive limitation on processing or the suspension of data flows by the supervisory authority pursuant to Article 58(2) or failure to provide access in violation of Article 58(1).6. Non-compliance with an order by the supervisory authority as referred to in Article 58(2) shall, in accordance with paragraph 2 of this Article, be subject to administrative fines up to 20 000 000 EUR, or in the case of an undertaking, up to 4 % of the total worldwide annual turnover of the preceding financial year, whichever is higher.7. Without prejudice to the corrective powers of supervisory authorities pursuant to Article 58(2), each Member State may lay down the rules on whether and to what extent administrative fines may be imposed on public authorities and bodies established in that Member State.8. The exercise by the supervisory authority of its powers under this Article shall be subject to appropriate procedural safeguards in accordance with Union and Member State law, including effective judicial remedy and due process.9. Where the legal system of the Member State does not provide for administrative fines, this Article may be applied in such a manner that the fine is initiated by the competent supervisory authority and imposed by competent national courts, while ensuring that those legal remedies are effective and have an equivalent effect to the administrative fines imposed by supervisory authorities. In any event, the fines imposed shall be

effective, proportionate and dissuasive. Those Member States shall notify to the Commission the provisions of their laws which they adopt pursuant to this paragraph by 25 May 2018 and, without delay, any subsequent amendment law or amendment affecting them.

Or. en

(32016R0679)

Justification

Penal provisions must be extended to software vendors if they are covered in Article 88b.

Amendment 483
Virginie Joron

Proposal for a regulation
Article 4 – paragraph 1 – point 1 – point a
Regulation (EU) 2018/1725
Article 3 – point 1

Text proposed by the Commission

Amendment

‘Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.’

deleted

Or. fr

Amendment 484

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 4 – paragraph 1 – point 1 – point a

Regulation (EU) 2018/1725

Article 3

Text proposed by the Commission

Amendment

Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.

deleted

Or. en

Amendment 485

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 4 – paragraph 1 – point 1 – point c

Regulation (EU) 2018/1725

Article 3

Text proposed by the Commission

Amendment

(29) “scientific research” means any research which can also support innovation, such as technological development and demonstration. These actions shall contribute to existing scientific knowledge or apply existing knowledge in novel ways, be carried out with the aim of contributing to the growth

deleted

of society's general knowledge and wellbeing and adhere to ethical standards in the relevant research area. This does not exclude that the research may also aim to further a commercial interest.

Or. en

Amendment 486

Virginie Joron

Proposal for a regulation

Article 4 – paragraph 1 – point 1 – point c

Regulation (EU) 2018/1725

Article 3

Text proposed by the Commission

(29) “scientific research” means any research which can also support innovation, such as technological development and demonstration. These actions shall contribute to existing scientific knowledge or apply existing knowledge in novel ways, be carried out with the aim of contributing to the growth of society's general knowledge and wellbeing and adhere to ethical standards in the relevant research area. This does not exclude that the research may also aim to further a commercial interest.

Amendment

(29) “scientific research” means any research which can also support innovation, such as technological development and demonstration. These actions shall contribute to existing scientific knowledge or apply existing knowledge in novel ways, be carried out with the aim of contributing to the growth of society's general knowledge and wellbeing and adhere to ethical standards in the relevant research area. This does not exclude that the research may also aim to further a commercial interest. ***Scientific research shall not include the profiling of natural persons, commercial marketing, monitoring the behaviour of individuals or activities aimed at influencing or directing the behaviour of natural persons, even if these activities use scientific methods.***

Or. fr

Amendment 487

Virginie Joron

Proposal for a regulation

Article 4 – paragraph 1 – point 3 – point a
Regulation (EU) 2018/1725
Article 10 – paragraph 2

Text proposed by the Commission

‘(k) processing in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, subject to the conditions referred to in paragraph 4; ;

Amendment

‘(k) processing in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, subject to the conditions referred to in paragraph 4, ***and without prejudice to the prohibited practices outlined in Article 5, the rules for classifying high-risk AI systems laid down in Article 6, the obligations imposed on operators of high-risk AI systems in Article 26 and the transparency obligations imposed in Article 50 of this Regulation.***

Or. fr

Amendment 488
Virginie Joron

Proposal for a regulation
Article 4 – paragraph 1 – point 3 – point a
Regulation (EU) 2018/1725
Article 10 – paragraph 2

Text proposed by the Commission

(l) processing of biometric data is necessary for the purpose of confirming the identity of a data subject (verification), where the biometric data or the means needed for the verification is under the sole control of the data subject.;

Amendment

(l) processing of biometric data is necessary for the purpose of confirming the identity of a data subject (verification), ***using a one-to-one comparison carried out locally on the data subject’s device,*** where the biometric data or the means needed for the verification is under the sole control of the data subject. ***This point shall only apply to verification and shall not cover the identification of a natural person using a comparison between his or her biometric data and the biometric data stored in a database within the meaning of Regulation (EU) 2024/1689; it shall not affect the prohibition provided for in***

Amendment 489

Virginie Joron

Proposal for a regulation

Article 4 – paragraph 1 – point 3 – point b

Regulation (EU) 2018/1725

Article 10 – paragraph 4

Text proposed by the Commission

‘4. For processing referred to in point (k) of paragraph 2, appropriate organisational and technical measures shall be implemented to avoid the collection and otherwise processing of special categories of personal data. Where, despite the implementation of such measures, the controller identifies special categories of personal data in the datasets used for training, testing or validation or in the AI system or AI model, the controller shall remove such data. If removal of those data requires disproportionate effort, the controller shall in any event effectively protect without undue delay such data from being used to produce outputs, from being disclosed or otherwise made available to third parties.

Amendment

‘4. For processing referred to in point (k) of paragraph 2, appropriate organisational and technical measures shall be implemented to avoid the collection and otherwise processing of special categories of personal data, ***such as pseudonymisation, data minimisation and filtering at the point of collection, at-source filtering of training data, access restrictions as well as state-of-the-art privacy-preserving and privacy-strengthening methods***. Where, despite the implementation of such measures, the controller identifies special categories of personal data in the datasets used for training, testing or validation or in the AI system or AI model, the controller shall remove such data ***without undue delay***. If removal of those data requires disproportionate effort, the controller shall in any event effectively protect without undue delay such data from being used to produce outputs, from being disclosed or otherwise made available to third parties. ***In order to determine whether the deletion of the data involves disproportionate effort, consideration shall be given to the state of the art, the implementation costs, the volume of data in question, the technical feasibility of isolating or extracting the data as well as the nature, scope and purposes of processing.***

Amendment 490
Virginie Joron

Proposal for a regulation
Article 4 – paragraph 1 – point 3 – point b
Regulation (EU) 2018/1725
Article 10 – paragraph 4

Text proposed by the Commission

Amendment

4a. If the processing referred to in paragraph 2, point (k), is carried out in an AI regulatory sandbox set up under Article 57 of Regulation (EU) 2024/1689, or as part of testing in real world conditions under Article 60 of this Regulation, it must comply with the conditions and safeguards provided for in Article 59 and Articles 60 and 61 of this Regulation respectively. In particular, personal data shall be processed in a functionally separate, isolated and protected environment, under the processor's control; effective monitoring and intervention mechanisms shall be put in place to identify and mitigate any high risks to the rights and freedoms of the data subjects and, where necessary, to interrupt the processing; and all personal data shall be deleted once the participation in the sandbox or testing has terminated.

Or. fr

Amendment 491
Virginie Joron

Proposal for a regulation
Article 4 – paragraph 1 – point 4
Regulation (EU) 2018/1725
Article 14 – paragraph 5

Text proposed by the Commission

‘5. Information provided under Articles 15 and 16 and any communication and any actions taken under Articles 17 to 24 and 35 shall be provided free of charge. Where requests from a data subject are manifestly unfounded or excessive, in particular because of their repetitive character or also, for requests under Article 17 because the data subject abuses the rights conferred by this Regulation for purposes other than the protection of their data, the controller may refuse to act on the request. The controller shall bear the burden of demonstrating that the request is manifestly unfounded or that there are reasonable grounds to believe that it is excessive.

Amendment

‘5. Information provided under Articles 15 and 16 and any communication and any actions taken under Articles 17 to 24 and 35 shall be provided free of charge. Where requests from a data subject are manifestly unfounded or excessive, in particular because of their repetitive character or also, for requests under Article 17 because the data subject abuses the rights conferred by this Regulation for purposes other than the protection of their data, the controller may refuse to act on the request. The controller shall bear the burden of demonstrating that the request is manifestly unfounded or that there are reasonable grounds to believe that it is excessive. ***This paragraph shall not affect the conditions and safeguards which apply to the processing of personal data in AI regulatory sandboxes and during testing in real world conditions under Articles 59, 60 and 61 of Regulation (EU) 2024/1689, which shall continue to apply.***

Or. fr

Amendment 492

Virginie Joron

Proposal for a regulation

Article 4 – paragraph 1 – point 6

Regulation (EU) 2018/1725

Article 24 – paragraph 1

Text proposed by the Commission

Amendment

1a. If a decision referred to in paragraph 1 is based on the outputs of a high-risk AI system within the meaning of Regulation (EU) 2024/1689, the safeguards accompanying this decision shall not affect the human oversight requirements imposed in Article 14 of this Regulation. In particular, the natural persons responsible for human oversight

must be able to understand properly the system's capabilities and limitations, to interpret correctly its outputs, to remain aware of the risk of over-reliance on these outputs, and to decide not to use the system or not to take its outputs into consideration, to override them or to invalidate them. Automated processing shall not deprive the data subject of the right to seek human intervention, express personal views and contest the decision.

Or. fr

Amendment 493

Virginie Joron

Proposal for a regulation

Article 4 – paragraph 1 – point 7

Regulation (EU) 2018/1725

Article 34 – paragraph 1

Text proposed by the Commission

‘1. In the case of a personal data breach that is likely to result in a high risk to the rights and freedoms of natural persons, the controller shall without undue delay and, where feasible, not later than 96 hours after having become aware of it, notify the personal data breach to the European Data Protection Supervisor. Where the notification to the European Data Protection Supervisor is not made within 96 hours, it shall be accompanied by reasons for the delay.’

Amendment

‘1. In the case of a personal data breach that is likely to result in a high risk to the rights and freedoms of natural persons, the controller shall without undue delay and, where feasible, not later than 96 hours after having become aware of it, notify the personal data breach to the European Data Protection Supervisor. Where the notification to the European Data Protection Supervisor is not made within 96 hours, it shall be accompanied by reasons for the delay. ***Processors shall continue to document personal data breaches that are not notified.***

Or. fr

Amendment 494

Virginie Joron

Proposal for a regulation

Article 4 – paragraph 1 – point 8

Regulation (EU) 2018/1725

Article 37 – paragraph 5

Text proposed by the Commission

Where storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person is based on consent, the **following shall apply**:

Amendment

Where storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person is based on consent, the **consent shall only be valid if it is freely given, specific, informed and unambiguous, and takes the form of a statement or a clear affirmative action, in accordance with Article 4, point (11), and Article 7 of this Regulation, in accordance with Guidelines 05/2020 of the European Data Protection Board on consent. It must be as easy for the data subject to refuse or withdraw consent as it was to give consent, and any such refusal or withdrawal must be without detriment. The interface used to request, give, refuse or withdraw consent shall be designed, organised and used in accordance with Article 25 of Regulation (EU) 2022/2065 and must not deceive or manipulate the data subject or materially distort or impair his or her ability to make free and informed decisions.**

Or. fr

Amendment 495

Virginie Joron

Proposal for a regulation

Article 4 – paragraph 1 – point 9 – point a

Regulation (EU) 2018/1725

Article 39 – paragraph 4

Text proposed by the Commission

4. The lists, the template and methodology adopted by the Commission and referred to in paragraph 6a of Article 35 of Regulation (EU) 2016/679 should

Amendment

4. The lists, the template and methodology adopted by the Commission and referred to in paragraph 6a of Article 35 of Regulation (EU) 2016/679

apply to the processing of personal data under this Regulation.

should apply to the processing of personal data under this Regulation, ***without prejudice to the right of the national supervisory authorities to draft their own guidelines, standards and lists, which shall be taken into account by the Board and the Commission.***

Or. fr

Amendment 496
Virginie Joron

Proposal for a regulation
Article 4 – paragraph 1 – point 10
Regulation (EU) 2018/1725
Article 45 a

Text proposed by the Commission

The common criteria adopted by the Commission and referred to in article 41a of the Regulation (EU) 2016/679 should apply to the processing of personal data under this Regulation.

Amendment

The common criteria adopted by the Commission and referred to in Article 41a of the Regulation (EU) 2016/679 should apply to the processing of personal data under this Regulation, ***without prejudice to the guidelines issued by the European Data Protection Board and the interpretation of Union law by the Court of Justice of the European Union, including as regards the notions of personal data, identifiable natural person, pseudonymised data and anonymisation.***

Or. fr

Amendment 497
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Article 5 – paragraph 1 – point 2 – introductory part
Directive 2002/58/EC (ePrivacy Directive)
Article 5

Text proposed by the Commission

2. *After* Article 5(3), the **following subparagraph is added**:

Amendment

2. *In* Article 5(3), the **paragraph is amended as follows**:

Or. en

Amendment 498

Piotr Müller

Proposal for a regulation

Article 5 – paragraph 1 – point 2 – introductory part

Text proposed by the Commission

2. *After* Article 5(3), the following **subparagraph is added**:

Amendment

2. Article 5(3) **is replaced by** the following:

Or. en

Amendment 499

Piotr Müller

Proposal for a regulation

Article 5 – paragraph 1 – point 2

Directive 2002/58/EC

Article 5 – paragraph 3

Text proposed by the Commission

This paragraph shall not apply if the subscriber or user is a natural person, and the information stored or accessed constitutes or leads to the processing of personal data.

Amendment

Storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person without consent, and subsequent processing, shall be lawful to the extent it is necessary for any of the following:

(a) carrying out the transmission of an electronic communication over an electronic communications network;

(b) providing a service explicitly requested by the user and improving functionality of the requested service;

(c) measuring and displaying advertising which is not selected on the basis of any

user profiling;

(d) measuring the audience of an online service in order to create anonymous aggregated information about the usage of that online service, where it is carried out by the controller of that online service, or by a third party acting together with or on behalf of this provider, or by an entitled and independent third party performing audience measurement in accordance with Article 24(1) of Regulation (EU) 2024/1083;

(e) maintaining, or restoring, or ensuring the security of the interface strictly necessary for the provision of an information society service requested by the user or the security of the terminal equipment used for the provision of such service, including in particular cybersecurity, the protection of personal data and privacy of the user and prevention of fraud and unauthorised access;

Paragraph (3) letters (b), (c) and (d) shall not apply to data controllers designated as gatekeepers under Regulation (EU) 2022/1925 (the Digital Markets Act).

Or. en

Amendment 500

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 5 – paragraph 1 – point 2

Directive 2002/58/EC (ePrivacy Directive)

Article 5, paragraph 3

Text proposed by the Commission

This paragraph shall not apply if the *subscriber or user is a natural person, and the information stored or accessed* constitutes *or leads to the* processing of

Amendment

3. Member States shall ensure that the storing of information, or the gaining of access to information already stored, in the terminal equipment of a subscriber or user is only allowed on condition that the

personal data.

subscriber or user concerned has given his or her consent, having been provided with clear and comprehensive information, in accordance with Directive 95/46/EC, inter alia, about the purposes of the processing. This shall not prevent any technical storage or access for sole the purposes set out in Article 88a(3) of Regulation (EU) 2016/679. of carrying out the transmission of a communication over an electronic communications network, or as strictly necessary in order for the provider of an information society service explicitly requested by the subscriber or user to provide the service.

This paragraph shall not apply if the information constitutes processing of personal data. .’

Or. en

Justification

Adaptation necessary to cater to changes under GDPR in new Articles 88a and b and to ensure consistency between both legal acts.

Amendment 501

Virginie Joron

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive (EU) 2022/2555

Article 23 a

Text proposed by the Commission

Amendment

Single-entry point for incident reporting

European point ***of entry*** for incident reporting

Or. fr

Amendment 502

Virginie Joron

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive (EU) 2022/2555

Article 23 a

Text proposed by the Commission

(1) ENISA **shall** develop and maintain a **single-entry** point to support the obligation to report incidents and related events under the Union legal acts where those Union legal acts provide so (**‘single-entry point’**). Without prejudice to Article 16 of Regulation (EU) 2024/2847 of the European Parliament and of the Council, ENISA may ensure that the **single-entry point** builds on the single reporting platform established under that Regulation.

Amendment

(1) ENISA **may** develop and maintain a point **of entry** to support the obligation to report incidents and related events under the Union legal acts where those Union legal acts provide so (**‘Union point of entry’**). **ENISA shall act as the single European coordination point between the national single points of entry established or appointed by the Member States, while guaranteeing their interoperability and the secure routing of notifications; it shall not function as a centralised point for the actual receipt, transmission or storage of notifications.** Without prejudice to Article 16 of Regulation (EU) 2024/2847 of the European Parliament and of the Council, ENISA may ensure that **coordination between the national points of entry** builds on the single reporting platform established **for the Member States** under that Regulation.

Or. fr

Amendment 503

Virginie Joron

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive (EU) 2022/2555

Article 23 a

Text proposed by the Commission

Amendment

(1a) The Union point of entry shall be based on existing national notification systems and shall guarantee the secure routing and interoperability of notifications between the notifying entities and the competent national authorities, without centralising the storage of these

*notifications within a single body.
ENISA's role shall be limited to technical operations and routing as well as checking the format and completeness of the notifications; ENISA shall not be the recipient of the notifications in substantive terms.*

Or. fr

Amendment 504

Morten Løkkegaard, Svenja Hahn, Sandro Gozi

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive (UE) 2022/2555

Article 23a – paragraph 1 – point 2

Text proposed by the Commission

(2) ENISA shall take appropriate and proportionate technical, operational and organisational measures to manage the risks posed to the security of the single-entry point and the information submitted or disseminated via the single-entry point. ENISA shall take into account the sensitivity of information submitted or disseminated pursuant to the Union legal acts referred to in paragraph (1) **and** ensure that competent authorities under those Union legal acts have access to and process the information as required under those Union legal acts.

Amendment

(2) ENISA shall take appropriate and proportionate technical, operational and organisational measures to manage the risks posed to the security of the single-entry point and the information submitted or disseminated via the single-entry point. ENISA shall take into account the sensitivity of information submitted or disseminated pursuant to the Union legal acts referred to in paragraph (1), ***including information concerning vulnerabilities, mitigation measures, ransomware demands, payment information or other commercially or legally sensitive information, and shall ensure that such information is subject to appropriate confidentiality, professional secrecy, access-control and data minimisation safeguards, while ensuring*** that competent authorities under those Union legal acts have access to and process the information as required under those Union legal acts.

Or. en

Justification

Sensitive incident information, including information related to vulnerabilities, mitigation measures and ransomware, must be protected by strong confidentiality and access-control safeguards. This is necessary to build trust in the single-entry point and to avoid underreporting by entities operating across the Single Market.

Amendment 505

Virginie Joron

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive (EU) 2022/2555

Article 23a (new) – paragraph 1 – point 2

Text proposed by the Commission

(2) ENISA shall take appropriate and proportionate technical, operational and organisational measures to manage the risks posed to the security of the single-entry point and the information submitted or disseminated via **the single-entry** point. ENISA shall take into account the sensitivity of information submitted or disseminated pursuant to the Union legal acts referred to in paragraph (1) and ensure that competent authorities under those Union legal acts have access to and process the information as required under those Union legal acts.

Amendment

(2) ENISA **and the national points of entry, each within their respective responsibilities**, shall take appropriate and proportionate technical, operational and organisational measures to manage the risks posed to the security of the single-entry point and the information submitted or disseminated via **this** point. ENISA **and the national points of entry** shall take into account the sensitivity of information submitted or disseminated pursuant to the Union legal acts referred to in paragraph (1) and ensure that competent authorities under those Union legal acts have access to and process the information as required under those Union legal acts.

Or. fr

Amendment 506

Virginie Joron

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive (EU) 2022/2555

Article 23 a – paragraph 1 – point 3

Text proposed by the Commission

Amendment

(3) ENISA shall provide and implement the specifications on the technical, operational and organisational measures regarding the establishment, maintenance and secure operation of the single-entry point. ENISA shall develop the specifications in cooperation with the Commission, the CSIRTs network and the competent authorities under the Union legal acts referred to in paragraph (1). The specifications shall ensure that:

(3) ENISA shall provide and implement the specifications on the technical, operational and organisational measures regarding the establishment, maintenance and secure operation of the single-entry point. ENISA shall develop the specifications in cooperation with the Commission, the CSIRTs network, ***the national single points of entry*** and the competent authorities under the Union legal acts referred to in paragraph (1). The specifications shall ensure that:

Or. fr

Amendment 507

Morten Løkkegaard, Svenja Hahn, Jeannette Baljeu, Sandro Gozi

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive (EU) 2022/2555

Article 23a – paragraph 1 – point e a (new)

Text proposed by the Commission

Amendment

(ea) entities using the single-entry point receive an electronic confirmation of submission and, where appropriate, information on the competent authorities to which the notification has been transmitted;

Or. en

Justification

Businesses need proof of compliance and clarity on where their report has gone.

Amendment 508

Sophia Kircher

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive (EU) 2022/2555

Article 23a – paragraph 1 – point f

Text proposed by the Commission

(f) a single notification of information submitted by an entity via the single-entry point can be used to fulfil reporting obligations as set out under any of the other Union legal acts which provide for incident reporting to the single-entry point.

Amendment

(f) a single notification of information submitted by an entity via the single-entry point can be used to fulfil reporting obligations as set out under any of the other Union legal acts which provide for incident reporting to the single-entry point ***and shall, to the greatest extent possible, enable entities to comply with existing reporting obligations under Union law, including Regulation (EU) 2022/2554 (DORA) and without requiring the resubmission of information already provided under other reporting frameworks.***

Or. en

Justification

As companies and organisations are currently integrating NIS2 requirements into their processes as part of the ongoing national implementation, companies should be able to fulfil existing reporting obligations through the same mechanism, to avoid creating additional administrative burden or duplicate reporting requirements

Amendment 509

Morten Løkkegaard, Svenja Hahn, Jeannette Baljeu, Sandro Gozi

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive (EU) 2022/2555

Article 23a – paragraph 1 – point f

Text proposed by the Commission

(f) a single notification of information submitted by an entity via the single-entry point ***can*** be used to fulfil reporting obligations as set out under any of the other Union legal acts which provide for incident reporting to the single-entry point.

Amendment

(f) a single notification of information submitted by an entity via the single-entry point ***should*** be used to fulfil reporting obligations as set out under any of the other Union legal acts which provide for incident reporting to the single-entry point.

Or. en

Justification

“Can be used” is too weak. The whole political point is that one report should legally count as one report.

Amendment 510

Sophia Kircher

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive (EU) 2022/2555

Article 23a – paragraph 1 – point 3 a (new)

Text proposed by the Commission

Amendment

(3a) The Commission should, by means of implementing acts, develop a common notification template for the single-entry point covering core elements required under Union legal acts that provide for notification through this single-entry point. It shall enable entities to submit a single notification to fulfil multiple reporting obligations. In preparing the draft implementing acts, the Commission shall cooperate with ENISA, the Cooperation Group, the CSIRTs Network and, where relevant, other competent authorities responsible for the Union legal acts concerned.

Or. en

Amendment 511

Morten Løkkegaard, Svenja Hahn, Sandro Gozi

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive (EU) 2022/2555

Article 23a – paragraph 1 – point 3 a (new)

Text proposed by the Commission

Amendment

(3a) Member States shall not require entities to submit the same information through additional national reporting

channels, portals or formats where that information has been submitted through the single-entry point in accordance with this Article, unless strictly necessary for reasons of national security and duly justified.

Or. en

Justification

Avoids gold-plating and ensures the single-entry point does not become the 28th portal on top of 27 national ones.

Amendment 512
Sophia Kircher

Proposal for a regulation
Article 6 – paragraph 1 – point 1
Directive (EU) 2022/2555
Article 23 – paragraph 1 – point 3b a (new)

Text proposed by the Commission

Amendment

(3b) The Commission should, by means of implementing acts, develop a common notification template for the single-entry point covering core elements required under Union legal acts that provide for notification through this single-entry point. It shall enable entities to submit a single notification to fulfil multiple reporting obligations. In preparing the draft implementing acts, the Commission shall cooperate with ENISA, the Cooperation Group, the CSIRTs Network and, where relevant, other competent authorities responsible for the Union legal acts concerned.

Or. en

Amendment 513
Virginie Joron

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive (EU) 2022/2555

Article 23 a – paragraph 1 – point 4

Text proposed by the Commission

(4) Unless provided for in the Union legal acts referred to in paragraph (1) of this, ENISA shall not have access to the notifications submitted through the ***single-entry point***.

Amendment

(4) Unless provided for in the Union legal acts referred to in paragraph (1) of this, ENISA shall not have access to the notifications submitted through the ***national single points of entry. The notifications shall be received and handled substantively at the level of the national competent authorities.***

Or. fr

Amendment 514

Virginie Joron

Proposal for a regulation

Article 6 – paragraph 1 – point 1

Directive (EU) 2022/2555

Article 23 a – paragraph 1 – point 5

Text proposed by the Commission

(5) Within [18] months from the entry into force of this Regulation, ENISA shall pilot the functioning of the ***single-entry point*** for each added Union legal act, including testing that takes into account the specificities and requirements for the notifications set out by each respective Union legal act, and after consulting the Commission and the relevant competent authorities under the respective Union legal acts. ENISA shall enable the notification of incidents under each Union legal act referred to in paragraph (1) only after piloting the functioning and after the Commission published a notice pursuant to paragraph 6.

Amendment

(5) Within [18] months from the entry into force of this Regulation, ENISA shall pilot the functioning of the ***national single points of entry*** for each added Union legal act, including testing that takes into account the specificities and requirements for the notifications set out by each respective Union legal act, and after consulting the Commission and the relevant competent authorities under the respective Union legal acts. ENISA shall enable the notification of incidents under each Union legal act referred to in paragraph (1) only after piloting the functioning and after the Commission published a notice pursuant to paragraph 6.

Or. fr

Amendment 515
Virginie Joron

Proposal for a regulation
Article 6 – paragraph 1 – point 2 – point a
Directive (EU) 2022/2555
Article 23 – paragraph 1

Text proposed by the Commission

Each Member State shall ensure that essential and important entities notify, without undue delay, its CSIRT or, where applicable, its competent authority in accordance with paragraph 4 of this Article of any incident that has a significant impact on the provision of their services as referred to in paragraph 3 of this Article (significant incident) via the ***single-entry point*** established pursuant to Article 23a.;

Amendment

Each Member State shall ensure that essential and important entities notify, without undue delay, its CSIRT or, where applicable, its competent authority in accordance with paragraph 4 of this Article of any incident that has a significant impact on the provision of their services as referred to in paragraph 3 of this Article (significant incident) via the ***national single points of entry*** established pursuant to Article 23a.;

Or. fr

Amendment 516
Sophia Kircher

Proposal for a regulation
Article 6 – paragraph 1 – point 2 a (new)

Text proposed by the Commission

Amendment

(2a) In Article 26, paragraph 1 the following point is added:

Manufacturers referred to in Annex II of this Directive shall be considered to fall under the jurisdiction of the Member State in which they have their main establishment in the Union under paragraph 2.

Or. en

Justification

Article 26(2) NIS2 provides a one-stop-shop based on the main establishment principle, but only for certain ICT service providers. This creates legal uncertainty for entities that combine ICT services with manufacturing, as it is unclear whether they can rely on the main establishment principle.

Amendment 517

Sophia Kircher

Proposal for a regulation

Article 6 – paragraph 1 a (new)

Text proposed by the Commission

Amendment

***The following Article 14a is added -
Harmonised application of the NIS2
Directive***

To ensure a consistent and proportionate application of Directive (EU) 2022/2555 across the Union, the Commission shall, in cooperation with the Cooperation Group referred to in Article 14 of this Directive and ENISA, issue guidance on the harmonised interpretation and application of key obligations under that Directive. Such guidance shall, in particular, address: (a) the classification of entities as essential or important entities, including the avoidance of additional or diverging national categorisations beyond those provided for in Directive (EU) 2022/2555;

(b) the conditions under which cybersecurity audits, assessments or equivalent supervisory measures may be required, including their frequency and scope;

(c) registration, notification, and reporting obligations applicable to entities operating in more than one Member State and;

(d) the application of proportionality in supervisory and enforcement practices;

Member States shall take utmost account

of such guidance when implementing and applying Directive (EU) 2022/2555 and shall refrain from introducing additional obligations that would undermine the uniform application of Union law.

Or. en

Justification

This amendment aims to reduce the cross-border administrative burden, promote a more harmonised application of the Directive , and prevent national gold-plating. Common guidance will enhance legal certainty, ensure a level playing field, and support the consistent implementation of the Directive across the internal market.

Amendment 518

Virginie Joron

Proposal for a regulation

Article 7 – paragraph 1 – point 1

Regulation (EU) 910/2014

Article 19 a – paragraph 1 a

Text proposed by the Commission

‘1a. Notifications pursuant to paragraph 1, point (b) of this Article to the supervisory body and, where applicable, to other relevant competent authorities, shall be made **through the single-entry point pursuant to** Article 23a of Directive (EU) 2022/2555.’;

Amendment

‘1a. Notifications pursuant to paragraph 1, point (b) of this Article to the supervisory body and, where applicable, to other relevant competent authorities, shall be made **by the national single points of entry to the single point of entry of the European Union, in accordance with** Article 23a of Directive (EU) 2022/2555;

Or. fr

Amendment 519

Virginie Joron

Proposal for a regulation

Article 7 – paragraph 1 – point 2

Regulation (EU) 910/2014

Article 24 – paragraph 2 a

Text proposed by the Commission

‘2a. Notifications pursuant to *in* paragraph 2, point (fb), of this Article to the supervisory body and, where applicable, to other relevant competent bodies, shall be made *through* the *single-entry point pursuant to* Article 23a of Directive (EU) 2022/2555..

Amendment

‘2a. Notifications pursuant to paragraph 2, point (fb), of this Article to the supervisory body and, where applicable, to other relevant competent bodies, shall be made *by the national single points of entry to the single point of entry of the European Union, in accordance with* Article 23a of Directive (EU) 2022/2555;

Or. fr

Amendment 520
Virginie Joron

Proposal for a regulation
Article 7 – paragraph 1 – point 3
Regulation (EU) 910/2014
Article 45 a – paragraph 3 a

Text proposed by the Commission

‘3a Notifications pursuant to *in* paragraph 3 to the Commission and to the competent supervisory body, shall be made through the *single-entry point* pursuant to Article 23a of Directive (EU) 2022/2555.’

Amendment

‘3a Notifications pursuant to paragraph 3 to the Commission and to the competent supervisory body shall be made through the *national single points of entry* pursuant to Article 23a of Directive (EU) 2022/2555.’

Or. fr

Amendment 521
Virginie Joron

Proposal for a regulation
Article 8 – paragraph 1 – point 1
Regulation (EU) 2022/2554
Article 19 – paragraph 1

Text proposed by the Commission

Financial entities shall report major ICT-related incidents to the relevant competent

Amendment

Financial entities shall report major ICT-related incidents to the relevant competent

authority as referred to in Article 46 via the ***single-entry point*** established pursuant to Article 23a of Directive (EU) 2022/2555 in accordance with paragraph 4 of this Article.;

authority as referred to in Article 46 via the ***national single points of entry*** established pursuant to Article 23a of Directive (EU) 2022/2555 in accordance with paragraph 4 of this Article.;

Or. fr

Amendment 522

Virginie Joron

Proposal for a regulation

Article 8 – paragraph 1 – point 2

Regulation (EU) 2022/2554

Article 19 – paragraph 2

Text proposed by the Commission

Financial entities may, on a voluntary basis, notify via the ***single-entry point*** established pursuant to Article 23a of Directive (EU) 2022/2555 significant cyber threats to the relevant competent authority when they deem the threat to be of relevance to the financial system, service users or clients. The relevant competent authority may provide such information to other relevant authorities referred to in paragraph 6.’

Amendment

Financial entities may, on a voluntary basis, notify via the ***national single points of entry*** established pursuant to Article 23a of Directive (EU) 2022/2555 significant cyber threats to the relevant competent authority when they deem the threat to be of relevance to the financial system, service users or clients. The relevant competent authority may provide such information to other relevant authorities referred to in paragraph 6. ***p***

Or. fr

Amendment 523

Arba Kokalari

Proposal for a regulation

Article 10 – title

Text proposed by the Commission

Repeals and transitory clauses

Amendment

Amendments, repeals and transitory clauses

Or. en

Amendment 524
Sophia Kircher

Proposal for a regulation
Article 10 – title

Text proposed by the Commission

Amendment

Repeals *and transitory clauses*

Amendments and repeals

Or. en

Amendment 525
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Article 10 – paragraph 1
Directive (EU) 2022/2557
Article 10 – paragraph 1

Text proposed by the Commission

Amendment

1. Regulation 2019/1150/EU is repealed with effect from [date = entry into application of this Regulation].

deleted

Or. en

Amendment 526
Virginie Joron

Proposal for a regulation
Article 10 – paragraph 1
Regulation (EU) 2019/1150
Full version

Text proposed by the Commission

Amendment

1. Regulation 2019/1150/EU is repealed with effect from [date = entry into application of this Regulation].

deleted

Amendment 527
Arba Kokalari

Proposal for a regulation
Article 10 – paragraph 1

Text proposed by the Commission

1. Regulation 2019/1150/EU is ***repealed with effect from*** [date = entry into application of this Regulation].

Amendment

1. Regulation 2019/1150/EU is ***amended as follows:***

Articles 2(11), 2(12), 6, 8 to 10, 12 to 14, 16, 17, and 18 paragraphs (2) to (4), are deleted as of [date = entry into application of this Regulation].

Or. en

Justification

Regulation (EU) 2019/1150 fills a gap that is not fully covered by Regulation (EU) 2022/2065 or Regulation (EU) 2022/1925. To avoid overlaps while keeping safeguards for SMEs that rely on online intermediaries, some provisions in Regulation (EU) 2019/1150 should be maintained.

Amendment 528
Sophia Kircher

Proposal for a regulation
Article 10 – paragraph 1

Text proposed by the Commission

1. Regulation 2019/1150/EU is ***repealed with effect from*** [date = entry into ***application of this Regulation***].

Amendment

1. Regulation 2019/1150/EU is ***amended as follows:***

Articles 2(11), 2(12), 6, 8, 9, 13, 14, and 16 to 18, are deleted as of [date of entry into ***force***].

Or. en

Justification

Preserving Articles 3, 4, 5, 7, 10, 11 and 12 of the P2B Regulation is essential to ensure fair and balanced platform-to-business relations. National enforcement demonstrates their practical value. These provisions safeguard transparency, protect businesses from sudden loss of market access, preserve pricing freedom, and ensure access to effective, low-cost dispute resolution. Neither the DSA nor the DMA provides equivalent protection: the DSA focuses on consumer-facing obligations, while the DMA applies only to designated gatekeepers. Removing these provisions would create a regulatory gap, particularly for SMEs that depend on online platforms.

Amendment 529

Sophia Kircher

Proposal for a regulation

Article 10 – paragraph 2

Text proposed by the Commission

Amendment

2. By way of derogation from paragraph 1, the following provisions shall continue to apply until 31 December 2032: *deleted*

(a) Article 2, point (1);

(b) Article 2, point (2);

(c) Article 2, point (5);

(d) Article 4;

(e) Article 11;

(f) Article 15.

Or. en

Amendment 530

Arba Kokalari

Proposal for a regulation

Article 10 – paragraph 2

Text proposed by the Commission

Amendment

2. By way of derogation from paragraph 1, the following provisions shall continue to apply until 31 December *deleted*

2032:

- (a) Article 2, point (1);**
- (b) Article 2, point (2);**
- (c) Article 2, point (5);**
- (d) Article 4;**
- (e) Article 11;**
- (f) Article 15.**

Or. en

Amendment 531
Virginie Joron

Proposal for a regulation
Article 10 – paragraph 2
Regulation (EU) 2019/1150
Full version

Text proposed by the Commission

Amendment

2. By way of derogation from paragraph 1, the following provisions shall continue to apply until 31 December 2032:

deleted

- (a) Article 2, point (1);**
- (b) Article 2, point (2);**
- (c) Article 2, point (5);**
- (d) Article 4;**
- (e) Article 11;**
- (f) Article 15.**

Or. fr

Amendment 532
Virginie Joron

Proposal for a regulation
Article 10 – paragraph 3 – introductory part

Text proposed by the Commission

3. The following acts are repealed, with effect from [Date, aligned with the entry into application of the amendments]:

Amendment

3. ***Subject to a comprehensive impact assessment***, the following acts are repealed, with effect from [Date, aligned with the entry into application of the amendments]:

Or. fr